
DEVELOPMENT APPLICATION

ASSESSMENT REPORT

REPORT TITLE:	707 Pacific Highway, Gordon – Change of use from a dwelling house to an Information and Education Facility (house museum), access upgrades, amenities building and associated works
APPLICATION NO:	eDA0453/25
PROPERTY DETAILS:	707 Pacific Highway, Gordon Lot 3 Sec 1 DP 3267 1,828.6m ² R4 High Density Residential
WARD:	Gordon
PROPOSAL/PURPOSE:	Change of use from a dwelling house to an Information and Education Facility (house museum), access upgrades, amenities building and associated works
TYPE OF DEVELOPMENT	Integrated
APPLICANT	Lucas Stapleton Johnson & Partners Pty Ltd
OWNER	Ku-ring-gai Council
DATE LODGED	20 August 2025
RECOMMENDATION	Approval

PURPOSE OF REPORT

To determine Development Application No eDA0453/25 for Tulkiyan House - change of use from a dwelling house to an Information and Education Facility (house museum), access upgrades, amenities building and associated works.

This application is reported to the Ku-ring-gai Local Planning Panel for determination in accordance with the Minister's Section 9.1 Local Planning Panels Direction as the land-owner is the Council.

INTEGRATED PLANNING AND REPORTING

Places, Spaces & Infrastructure

Community Strategic Plan Long Term Objective	Delivery Program Term Achievement	Operational Plan Task
P2.1 A robust planning framework is in place to deliver quality design outcomes and maintain the identity and character of Ku-ring-gai.	Applications are assessed in accordance with state and local plans.	Assessments are of a high quality, accurate and consider all relevant legislative requirements.

EXECUTIVE SUMMARY

Issues

Ancillary facilities
Demolition related to a heritage item
Access and parking
Building design

Submissions

Notification Period:
08/09/2025 – 08/10/2025:
3 submissions

Land and Environment Court

N/A

Recommendation

Approval

HISTORY

Site history

The site has a history of residential use.

Previous applications history

Council's records show previous applications relating to the site as follows:

Type	Application	Description	Decision	Date
ConvDA	550/06/DF	Heritage property – front fence	Approved	
DA	DA0139/11	Construction of a gabled pavilion and driveway and change of use to community facility - heritage property	Withdrawn	29/03/2011
DA	DA0393/11	Construction of a gabled pavilion - Tulkiyan house - Heritage property	Withdrawn	28/07/2011
DA	DA1004/10	Construction of external building (interpretation space) and works to the driveway - Heritage listed property	Withdrawn	30/12/2010
eDA	eDA0049/24	Change of use from a dwelling house to an Information and Education Facility (house museum), access upgrades, amenities building and associated works - Heritage Item - Integrated Development - Heritage Act 1977	Withdrawn	19/02/2024
eDA	eDA0059/25	Tulkiyan House - Change of use from a dwelling house to an Information and Education Facility (house museum), access upgrades, amenities building and associated works - Heritage Item - Integrated Development - Heritage Act 1977	Withdrawn	26/02/2025

Current Development Application History

Date	Action
20/08/2025	Application lodged.
27/08/2025	Referral received from Council's Senior Building Surveyor. Acceptable, subject to conditions.
31/08/2025	Referral received from Council's Team Leader Development Engineers and Strategic Traffic Engineer. Acceptable, subject to conditions.

3/09/2025	Referral received from Council's Team Leader – Landscape, Tree and Ecological Assessment. Acceptable, subject to conditions.
8/09/2025 – 8/10/2025	The application was notified to neighbouring property owners for a period of 30 days. Three submissions were received, including one submitted after the notification period had ended.
17/09/2025	Referral received from Council's Heritage Advisor. Acceptable. subject to conditions.
16/10/2025	Referral received from Heritage NSW. Acceptable. General Terms of Approval issued.

THE SITE



Figure 1: Aerial photograph of the subject site and surrounding area

Site description

The site is legally identified as Lot 3, Section 1 in DP 3267 and is known as No. 707 Pacific Highway, Gordon (**Figure 1**). The site is regular in shape with an area of 1,828.6m² by survey. The site is located on the eastern side of Pacific Highway and has a frontage of 30.48 metres and a depth of 60.24 metres. The site has a crossfall of 4.55 metres from the front north-western corner to the rear south-eastern corner.

The site presently includes a two storey 'Arts and Crafts' style brick dwelling house with a tile roof, along with a small metal shed atop a deteriorated concrete slab. The front boundary of the site is lined with a brick and timber front fence, with gates at the vehicular and pedestrian access points, whilst the side and rear boundaries are lined with timber paling fences.

A single-width vehicular crossover is located at the northern end of the frontage with a gravel driveway which runs along the northern boundary between the dwelling house and the

setback to meet the concrete pad. A separate pedestrian entry is located centrally within the frontage and provides a gravel path which curves to link up with the gravel driveway and provides access to the main entrance to the dwelling house located at the front north-western corner of the dwelling house. Additional paths are found within the site, including along the side and rear elevations of the dwelling house and within the rear yard. The remainder of the site is grassed and includes a large number of trees along with garden beds.

The site is known as 'Tulkiyan' and is identified as a State listed heritage item (SHR No. 01733) and is also a locally listed as a heritage item (No. 111) within Schedule 5 of Ku-ring-gai Local Environmental Plan 2015 ('KLEP 2015').

Constraint:	Application:
Visual character study category	Not categorised on map
Easements/rights of way	Yes
Heritage Item - Local	Yes
Heritage Item - State	Yes
Heritage conservation area	No
Within 100m of a heritage item	Yes – Nos. 748 and 738 Pacific Highway
Bush fire prone land	No
Natural Resources Biodiversity	No
Natural Resources Greenweb	No
Natural Resources Riparian	No
Within 25m of Urban Bushland	No
Contaminated land	No

Surrounding development

The site is located within an R4 High Density Residential zone and is surrounded by residential flat buildings (RFBs). The adjoining site to the north is No. 711 Pacific Highway, which includes a four storeys brick RFB, whilst the site to the south is No. 705 Pacific Highway, which accommodates a three storeys brick RFB. The adjoining site to the rear is No. 22-24 Henry Street which is accommodated by a more contemporary four storeys RFB.

THE PROPOSAL

The application proposes the change of use from a dwelling house to an Information and Education Facility (house museum), access upgrades, stormwater management upgrades, the addition of an amenities building and associated works. The proposal is outlined in detail as follows:

Change of Use

- Change of use from a dwelling house to an Information and Education Facility (house museum).
- Hours of operation:
 - o Supervised public access to the dwelling house and gardens: no more than 14 times a year and only within the hours of 10am to 4pm (weather permitting).
 - o Events: no more than 12 events per year for no more than 4 hours public access per event.
- Staff arrangements (various options presented to cater to the different circumstances/ scenarios, i.e. number of guests, type of event, large tour groups):
 - o Usual house tour operations (option 1):

- 2 trained volunteer guides for morning shift
 - 2 trained volunteer guides for afternoon shift
 - 1 supervisor (trained/experienced volunteer or a staff member)
- Usual house tour operations (option 2):
 - 2 trained volunteer guides for full day
 - 1 supervisor also acting as a guide (trained/experienced volunteer or a staff member)
- 'Free-flow' tours (option 1 – ground floor rooms only):
 - 4 volunteer guides
 - 1 supervisor (trained/experienced volunteer or a staff member)
- 'Free-flow' tours (option 2 – ground and upper floor rooms):
 - 4 volunteer guides for ground floor
 - 4 volunteer guides for upper floor
 - 1 supervisor (trained/experienced volunteer or a staff member)
- Large booked groups (e.g. 40-45 on tour bus)
 - 4 volunteer guides, 1 of whom is experienced to act as supervisor

Access improvements to the grounds

- Adjust ground level of driveway at eastern end using imported fill to meet floor level of new amenities building and cover with existing gravel to match driveway. Two existing steps adjacent to the house will be covered by the imported fill and gravel due to the level changes.
- Adjust ground levels at rear (east) of house museum to form new terrace (approximately 13m²) with surrounding low brick retaining wall. Surface to be covered in gravel to match driveway and provide level access to proposed rear ramp and small gathering space.
- Construct new brick stairs and landing to eastern side of new terrace adjacent to new ramp leading to east garden.
- Construct new lightweight metal ramp with glass reinforced plastic (GRP) flooring on metal posts and 300mm diameter concrete piers with handrail leading from eastern side of new terrace to the east and then south to connect to former tennis court. Retain existing brick path under.

Access improvements to the house

- Construct new lightweight metal ramp with GRP flooring and metal handrail on northern side of dwelling leading from the driveway and entry path to the main entry porch. The ramp is to be installed over the existing entry steps and landing, which are to be left exposed.
- Provide offset hinges to servery and kitchen doors to increase the width of the existing door openings.
- Provide portable step ramp to door between dining room and the southeastern verandah.

New amenities building

- Demolition and removal of existing concrete slab (used for former garage) and metal shed atop located at the end of the gravel driveway.
- Construct a new stepped, suspended concrete slab supported on concrete piles.
- Construct a new single storey amenities building within the new terrace area atop the stepped concrete slab.
 - The western side is to be constructed upon a concrete slab 1 (finished floor level 121.23) and contain a locker room with space for 36 lockers, a

- kitchenette, and a female toilet. Access to these elements is provided on the western side of the building.
 - The eastern side is to be constructed upon concrete slab 2 (finished floor level 120.74) and contain male toilets and an accessible toilet.
 - Windows are provided on the southern and western elevations, with no windows or openings on the northern side elevation presenting to the adjoining site.
- Install a fully sealed roof drainage system to manage stormwater from the new structure.

Landscaping

- Remove one Chinese fringe tree (*Chionanthus retusus*) to accommodate the new amenities building. Identified as Tree 10 within Arboricultural Impact Assessment (AIA) prepared by Glenyss Laws Consulting Arborist.
- Remove one Flowering Cherry tree (*Prunus sp.*) due to its short ULE and low STARS value whilst also being considered unsuitable for retention. Identified as Tree 15 within the AIA.
- Relocate two Firespike shrubs (*Odontonema strictum*) and two Brazilian plume shrubs (*Justicia carnea*) from the current location of the proposed amenities block to sit between the new rear ramp and the northern boundary.
 - To be removed prior to the commencement of construction works and temporarily relocated on-site for holding during works, then to be replanted once all works are complete.
- Relocate existing ground covers (*Clivia sp.*) from the current locations within the rear yard that will be impacted by the works to the base of the brick retaining wall of the new gravel terrace and along the sides of the new rear ramp.
 - To be removed prior to the commencement of construction works and temporarily relocated on-site for holding during works, then to be replanted once all works are complete.

Stormwater management upgrades

- Provide one 2,000 litre below ground rainwater re-use tank within rear garden.
- Construct one 3200 millimetres x 600 millimetres x 600 millimetres absorption trench within rear garden.
- Install a sediment control inlet pit adjacent to the absorption trench.

Refer to **Figures 2, 3 and 4** below for plan extracts.

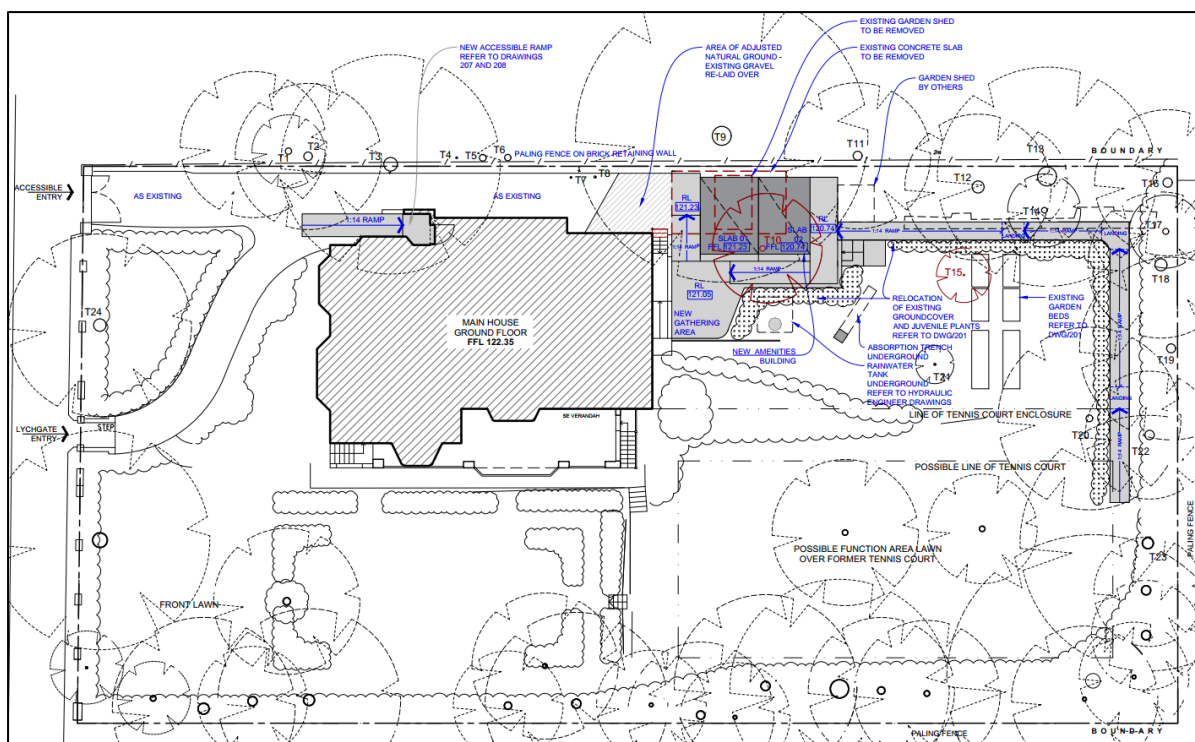


Figure 2: Extract of proposed Site Plan, new works shown in grey
(Source Lucas Stapleton Johnson, 08.01.2025)

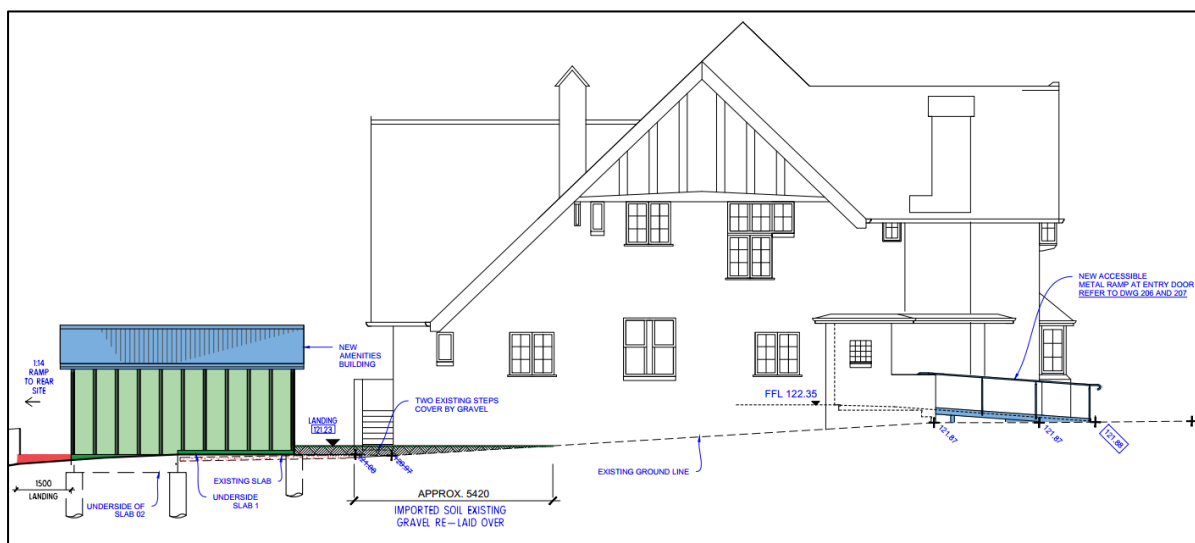


Figure 3: Extract of Northern Elevation, proposed works shown in colour
(Source Lucas Stapleton Johnson, 08.01.2025)

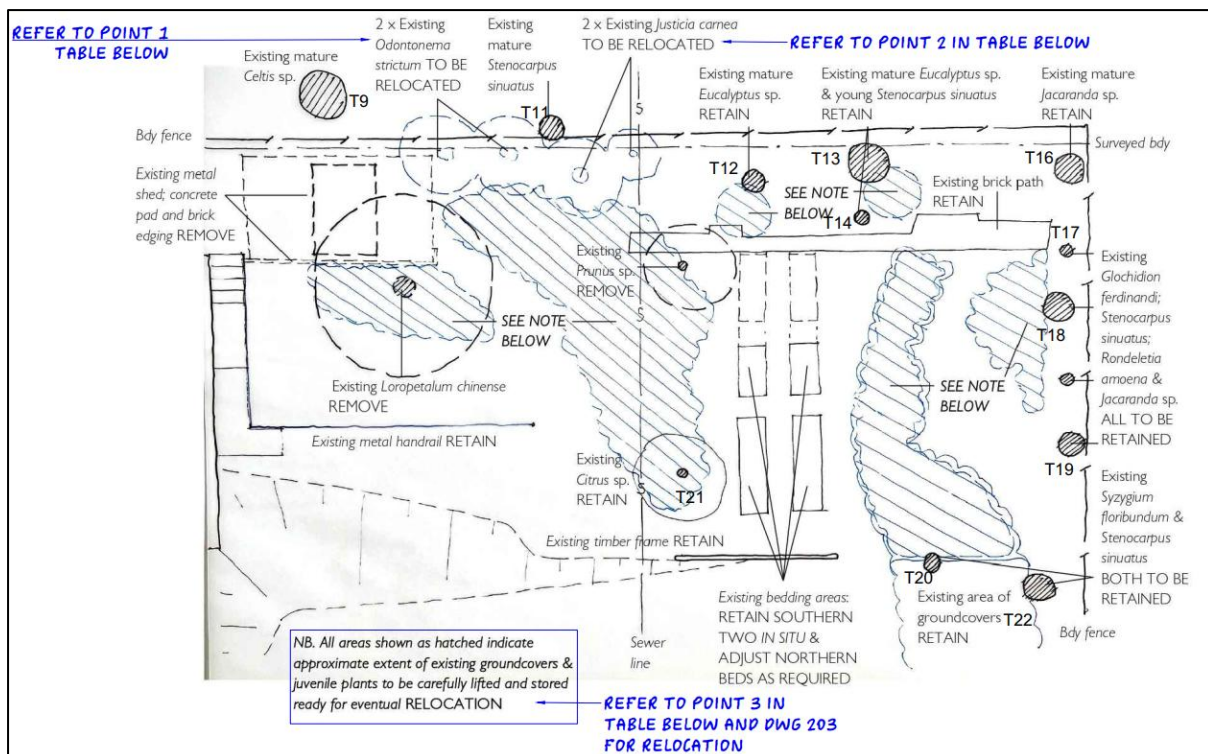


Figure 4: Extract of proposed Landscape Plan
(Source Lucas Stapleton Johnson, 08.01.2025)

CONSULTATION

Community

In accordance with Appendix 1 of the Ku-ring-gai Community Participation Plan, owners of surrounding properties were given notice of the application. In response, three submissions from the following were received:

1. Strata Committee – No. 22-24 Henry Street, Gordon
2. Strata Committee – No. 711 Pacific Highway Gordon
3. J. Hutchinson – Unit 8/22-24 Henry Street, Gordon

The submissions raised the following issues:

Location of Proposed Amenities Block

Issues raised:

- **Impact of noise and odours generated from the amenities block on neighbouring site.**
- **Privacy and overlooking potential of the amenities block.**

The amenities block has been sited in the proposed location to resemble the general location of the existing dilapidated concrete slab and previous garage, which is presently accommodated by a small metal shed. This location has been recommended and deemed acceptable by Council's Heritage Advisor and Heritage NSW, as it results in minimal impact on the significance of the heritage item and reflects the existing locations of built/hardstand areas of the site.

The amenities block has been designed to have no windows, doors or other openings on its northern elevation which faces the neighbouring site. This ensures that the structure will not result in any overlooking between sites. The structure is also of a relatively small height and scale, ensuring that it does not tower over the side boundary fence or impose upon the visual privacy of the adjoining site. A long driveway extends along the opposite side of the boundary fence in the neighbouring site, providing sufficient separation between the block and the neighbouring development, including its private open space areas.

Furthermore, the site will only be in use for limited hours a day for a maximum of 26 days a year. As such, the amount of noise and odours generated by the new structure will be minimal. This, in combination with the small scale, the separation from neighbouring development and the absence of windows on the side elevation ensures that the amenities block will not result in adverse impacts on neighbouring sites.

Impact of Works on Trees

Issues raised:

- **Impact of the removal of the existing concrete slab, construction of a new concrete slab, construction of ramps and adjustments to ground levels on the root zones of existing trees and vegetation on the site.**
- **Impact of these works on the large tree on the adjoining site located near the boundary.**

The proposal has been accompanied by an Arboricultural Impact Assessment and Root Mapping Report prepared by Glenyss Laws and has also been reviewed by Council's Team Leader – Landscape, Tree and Ecological Assessment. A plan demonstrating the proposed works, root mapping locations and proposed structural concrete pile locations has also been submitted. These documents outline that the removal of the existing concrete slab and the proposed works can be undertaken without damaging the roots of surrounding trees, including the large neighbouring tree referred to in the submission (identified as Tree 9 in the reports).

The new concrete slabs are to be constructed atop of new 450mm diameter concrete piles which have been strategically placed to avoid the roots of the surrounding trees mapped within the root mapping investigations. The raised nature of the slab atop these piles also ensures that the roots are not harmed as a result of the development. Council's Team Leader – Landscape, Tree and Ecological Assessment has provided conditions to be included in the consent which will also ensure that all trees are protected, and works are carried out accordingly.

Car Parking

Issues raised:

- **use of public transport by visitors is unlikely and will instead result in increased parked cars on Pacific Highway outside of clearway hours. This is noted as being what has occurred when Tulkiyan House has been open previously.**
- **increase in parked cars on Pacific Highway will worsen a current blind-spot for vehicles entering and exiting the driveway of No. 711 Pacific Highway.**
- **parking along Pacific Highway is already used for commuters using public transportation and surrounding residents who do not have sufficient off-street parking. Additional use by Tulkiyan House visitors will result in further pressure on the highway.**

The proposal has been accompanied by a Traffic and Parking Impact Assessment prepared by Express Traffic Engineering Solutions and the car parking and access arrangements have also been reviewed by Council's Team Leader Development Engineers and Strategic Traffic Engineer. The site does not provide any on-site parking; however, it is within 300 metres of Gordon train station and within close proximity to several bus routes, suggesting reduced reliance on private vehicles. The proposal states that information regarding the availability of public transport in the area will be promoted on the museum's website (if made), flyers, posters and any other communications with visitors. Use of public transport by employees/volunteers will also be encouraged within the employment agreement.

In addition, parking is available outside of peak times on Pacific Highway, with further street parking available on neighbouring streets including Ravenswood Avenue. A recent parking survey indicated that on average, 52% of on-street parking spaces in these locations were occupied between 10am and 5pm, which provides a large number of spaces available for visitors to the site during its minimal opening days.

Given the site will only be open a maximum of 26 times a year, with 14 of those times being for supervised public access between 10am and 4pm, the impact of parked cars associated with the development will be minimal. If cars are parked within the marked zones along Pacific Highway, then the development presents no issues in relation to an existing blind-spot for the driveway of No. 711 Pacific Highway, as vehicles not associated with the site are also able to park in those same public locations.

Council's officers have also assessed the proposal in relation to the relevant guidelines, including the Roads and Maritime Services' "Guide to Traffic Generating Developments – 2002", the Institute of Transportation Engineers guideline and additional supporting guidelines including the ACT Parking and Vehicular Access Guideline (2002). The proposal has been deemed satisfactory in relation to these documents and has been considered to have an acceptable impact on the surrounding traffic network.

Stormwater Impacts

Issues raised:

- **unclear how stormwater or roof water from the proposed development will be satisfactorily disposed of, both during operation and the construction phase.**
- **the site has previously resulted in water inundation on the adjoining rear site (No. 22-24 Henry Street) which has caused significant damage to the adjoining property.**
- **the development might increase or otherwise adversely impact the flow of water into the adjoining rear site.**

The proposal has been accompanied by detailed Stormwater Management Plans prepared by Hydracor Consulting Engineers which demonstrate a new stormwater management system for the proposed works.

The system includes a new 2,000 litres below-ground rainwater tank located within the rear yard to the south of the new amenities block and terrace, with stormwater from this new building directed to this new tank. Overflow from this tank and associated hardstand areas will be directed to a new 3.2 metres long absorption trench, located to the east of the new tank.

The stormwater system associated with the existing dwelling is to be retained, with the multiple kerb outlets along the site street frontage providing a discharge point for the

dwelling.

The possibility of connecting to the stormwater pipe within the adjoining southern site (No. 705 Pacific Highway) was discussed between Council's Team Leader Development Engineers and the project engineer. However, this required obtaining an easement as well as upgrading the stormwater disposal within the structural root zones of existing trees which was considered to be problematic, and the proposed solution was developed as an alternative.

Council's Team Leader Development Engineers has confirmed that the new system is acceptable and has been designed in accordance with the requirements of KDCP 2024 and also meets the relevant provisions of KLEP 2015. Relevant conditions of consent have been recommended by the Team Leader Development Engineers in relation to stormwater and water management which have been included in the draft conditions set (**Conditions 1 and 45**)

Conclusion

All issues raised within the submissions have been addressed and the assessment undertaken by the specialist officers is concurred with. In this regard, the proposal is appropriate in relation to the above concerns. Conditions of consent have also been recommended where required to mitigate any potential impacts.

Internal & External Referrals

Heritage

Council's Heritage Advisor commented on the proposal as follows:

Planning Instruments:

Ku-ring-gai Local Environmental Plan (KLEP) 2024

Clause 5.10 (4) of the KLEP 2015 requires that before granting consent to the proposed works Council must consider the effect of the works on the heritage values of a place listed in the Heritage Schedule of KLEP 2015

Clause 5.10 of the KLEP 2015 requires that before granting consent to the proposed works Council must consider the effect of the works on the heritage item, nearby items or conservation area concerned. Clause 5.10 (5) allows Council to require a Heritage Impact Statement before granting consent.

Heritage Status

<i>Local Heritage Item</i>	<i>Yes</i>
<i>Heritage Conservation Area</i>	<i>No</i>
<i>Immediate vicinity of a heritage item</i>	<i>Yes – Nos. 748 and 738 Pacific Highway</i>

Statement of Significance

Council's heritage inventory sheet has the following statement of significance for the Heritage Item:

'Tulkiyan is of State significance as an important, intact example of a fine Arts & Crafts suburban villa, designed by eminent Edwardian architect B.J. Waterhouse of

the architectural firm of Waterhouse and Lake, for a prominent local family. The design of the house, together with their contents, represent the taste and lifestyle of the upper middle class in Sydney prior to World War 1, and document the building's ownership and occupation by the Donaldson Family for 80 years with a minimum of alteration from the original 1913 house. The ownership has remained in the one family from the commissioning of the architect to its bequest to Ku-ring-gai Council by Miss Margaret Donaldson in 1985. The largely intact interior is furnished with most of the original contents of the house. There is comprehensive documentary evidence relating to the house, family, contents and garden. The house and its garden setting also represent the suburban expansion of Gordon during the early twentieth century (Noel Bell Ridley Smith, 1998, 43).'

Description

Site and Garden:

The site is 1.32 acres, or 0.534 hectares. It is bounded by paling fences to the west, north and east, while the southern (Pacific Highway) boundary is a brick fence with timber infill panels. The main entrance to Tulkiyan is through a timber gate located under a brick arch with terracotta tile detail in keeping with the detailing of the main house. Two large Lily Pilly trees frame the brick lych gate to the Pacific Highway front. The gravel driveway (edged with a low brick wall; and a stone wall to its north) is located at the north-western corner of the site and is entered through this pair of timbered gates. The driveway leads to a garage north-east of the house's rear corner. The gravel path curves across the block towards the front door, joining up with the driveway. On the southern side of the house a sandstone path leads to the rear. An area of lawn is to the house's west, south-west and south. In the lawn to the house's south-east are two beds of roses. A rear garden behind the garage has a shed, incinerator, compost heaps, brick path and areas of garden beds, more lawn and trees lining the north-eastern, eastern and southern boundaries.

House:

The house is designed in the Federation Arts and Crafts style by B. J. Waterhouse. Tulkiyan is an important intact example of Waterhouse's work. The house is asymmetrical with an all embracing roof line covering balconies and verandahs. All major rooms downstairs and bedrooms upstairs have access to verandahs and sleeping out was 'an activity seen as being conducive to health'.

Tulkiyan is a face brick building with steeply pitched terracotta shingled roof and tall chimneys finished with gabled shingled caps. The roof gables are either hung with terracotta shingles or half timbered with bracketed eaves. The main entry is on the northern side of the house via a covered porch which opens under the staircase.

The ground floor includes a stair hall, morning room, living room, dining room, kitchen, pantries and maids' room, while the first floor contains the four bedrooms, a bathroom and lavatory. A wide verandah on the eastern side of the house opens off the dining room and overlooks the side garden and former tennis court lawn. Each of the four bedrooms on the first floor has built in cupboards and opens onto a separate balcony. These were often used at this period for sleeping out, an activity seen as being conducive to good health.

The interior of the house includes some good examples of Edwardian joinery and hardware, including a built in sideboard accessible from both the dining room and the kitchen and a fine timber stair. The original timber front entry gate is located below a

brick arch with a terracotta shingled hood detail similar to that on the chimneys. A matching pair of timber vehicular gates at the driveway entry is engraved with the name 'Tulkiyan.' The original layout of the front garden and the pea gravel driveway remain together with remnants of the original garden and early plantings around the house. Tulkiyan is typical of Waterhouse's distinctive Edwardian houses. In his writing he advocated simplicity and straightforwardness in house planning. The house has a remarkable flow of simple spaces on the ground floor and an economy of planning.

Tulkiyan is a remarkably intact survivor of a distinctive phase in the development of domestic architecture in Australia. It is a substantial two storey brick residence located on the north eastern side of the Pacific Highway, Gordon NSW.

Controls

The following relevant objectives and controls apply for KDCP2024:

Development Controls	Complies
19B.2 Demolition related to a Heritage Item	
Partial Demolition of a Heritage Item	
4. In considering applications for partial demolition of a Heritage Item (including parts of buildings and other structures, trees and landscape features), Council will assess:	
i) the significance of the building part or structure and/or landscape features and whether its retention is considered necessary;	NO
ii) its contribution to the significance of the Heritage Item as a whole;	YES
iii) whether all alternatives to demolition have been considered with reasons provided as to why the alternatives are not acceptable.	YES

An assessment of the variations to the controls identified in the compliance table is provided below.

19B.2 Demolition related to a Heritage Item

Objectives

1. To ensure that sites, buildings and landscape features that contribute to the significance of an HCA are retained.
2. To ensure that Heritage Items and all significant elements of Heritage Items are retained and conserved.

For the following reasons it is considered that the objectives and controls are achieved despite the variation to the design control:

cl.19B.2.4(i)

- i. The existing slab is in poor condition, being weathered with cracking, is structurally unsound and does not meet current standards to support a new amenities building. The existing slab is also not of an adequate size to support an amenities building that provides for equitable water-closets (WCs).
- ii. The 1998 NBR Conservation Management Plan (CMP) for the place identified the concrete slab as being of "considerable" significance (i.e. moderate), being compromised by later modifications. The removal of this

slab will be mitigated by the design of the new amenities building, which has been located and detailed to interpret the early garage.

Development Control	Complies
19D. HERITAGE ITEMS	
19D.1 Adaptive Reuse	
1. Development involving adaptive reuse of a Heritage Item requires the preparation of a Conservation Management Plan (CMP) by an experienced consultant to guide change and ensure conservation of the Heritage Item.	YES
2. In accordance with Clause 5.10.10 of the KLEP, Council will consider variations to other development standards, including car parking requirements, in order to achieve desirable heritage and planning	YES

Development Control	Complies
19D.3 Gardens and Landscaping	
1. Trees, and garden elements and structures which contribute to the significance of the Heritage Item are to be retained and conserved. Examples of historic garden elements and structures can include, but are not limited to, tennis courts, croquet lawns, grottos, ferneries, garden terracing, lawn edgings etc.	YES
2. New gardens should be horticulturally and stylistically sympathetic to the period of the Heritage Item. The use of similar materials such as sandstone, brick and gravel is encouraged.	YES

Development Control	Complies
19D.4 Access and Parking	
Equitable Access	
1. Modifications and alterations to provide access and mobility are to: i) explore all options to achieve the statutory requirements in the least obtrusive manner possible; iii) involve the least demolition of significant fabric; iii) be reversible; and iv) preserve fabric of higher significance if a compromise is required.	YES YES YES YES
Note: Access requirements apply for public buildings and residential flat buildings; they are not generally required for dwelling houses. Note: Access solutions will be unique to each property and will be assessed on their individual merits.	
Driveways	
2. Original and existing rear lane or side entry vehicle access is to be retained.	YES
Original Coach Houses, Stables and Garages	
16. Where demolition extension or change of use for original garage, coach house or stable is justified, the proposal is to provide replacement parking in the same or alternate location that will maintain the significance of the Heritage Item including its setting.	N/A
17. Where original and early garages, coach houses and stables survive, they should be retained and conserved.	NO
18. Original garage doors, usually boarded timber, are to be retained and conserved, where possible. Where replacement doors are proposed to original or early garage structures, they are to be similar in colour, materials and detail of the original.	YES

19D.4 Access and Parking

Original Coach Houses, Stables and Garages

Objective

12. To retain and conserve original and early coach houses, stables and motor garage as they contribute to the setting of the house.

For the following reasons the objectives of the controls are achieved despite the variation to the design control:

cl.19D.4.17

- i. The existing rear concrete garage footing and base is degraded. The draft conservation management plan (CMP) identifies the footings and base as being of exceptional significance, likely because it provides evidence of the early configuration of the place. The slab is proposed to be demolished as the new amenities building requires the same finished floor level as the path in order to provide equitable access.
- ii. The removal of this slab will be mitigated by the design of the new amenities building, which has been located and detailed to interpret the early garage.

Development Control	Complies
19D.5 Building Design	
Alterations and Additions – External	
1. All works to a Heritage Item are to comply with the controls in this section regardless of whether the property is located in an HCA or not.	NO
2. Development applications for works to a Heritage Item require a materials board and details of the colour scheme and finishes to be submitted.	YES
3. New work to Heritage Items may be identifiable as new; however, works are to respect and have minimal impact on the property heritage significance.	YES
4. All significant built features of a Heritage Item are to be retained and conserved.	YES
5. Original materials, finishes and details are to be retained and their repair using traditional techniques is encouraged.	YES
6. Alterations and additions are to respect the scale, form, height, materials and colours of the Heritage Item.	YES
7. Alterations and additions are to be located at the rear or side of the building to maintain the integrity of the prominent elevations and streetscape contribution.	NO
8. Extensions, alterations and additions are not to visually dominate or compete with the original scale of the existing building.	YES
9. Alterations and additions to a Heritage Item site are to respect the heritage significance and predominant architectural character of the Heritage Item by having similar massing, style, form, proportions and arrangement of parts to the building itself. Extensions and additions are to be kept at or below the existing roof ridge height.	YES
Alterations and Additions - Internal	
12. All significant interior spaces and fabric of Heritage Items are to be retained and conserved.	YES

13. Original materials, finishes and details are to be retained and their repair using traditional techniques is encouraged.	YES
14. The re-instatement of missing elements and details, where known, and the removal of past unsympathetic changes, is encouraged.	YES
Views	
15. New development on the site of a Heritage Item is to demonstrate that it will not reduce or impair important views to and from the Heritage Item from the public domain.	YES
Verandahs	
17. Original verandahs and porches to the front and side elevations of contributory properties are to be retained where contributing to the significance of the property.	NO

19D.5 Building Design

Alterations and Additions

Objectives

1. To ensure the significant external features of a Heritage Item and its setting are retained and new development is sympathetic in terms of bulk, form, style, character, scale, and materials.
2. To encourage the reinstatement of missing elements, where known, and the removal of later unsympathetic changes.
3. To ensure that the materials, finishes, and colours of new work enhances the identified significance of the Heritage Item.
4. To ensure alterations and additions do not dominate the Heritage Item.
5. To ensure the significant internal spaces and features of a Heritage Items are identified, retained and conserved.
6. Encourage the re-instatement of missing elements, where known, and the removal of later unsympathetic changes.
7. To ensure the retention and encourage reinstatement of early verandah and balcony forms.
8. To protect the original fabric and details of doors and windows of heritage items.

For the following reasons the objectives of the controls are achieved despite the variations to the design controls:

Cl.19D.5.1 and 19D.5.7

Ramp and Front Entry Porch

- i. The new entry ramp is freestanding and will not result in any physical changes to the original fabric of the entry porch.
- ii. The proposed solution has been selected as it provides the best balance between providing equitable access under the disability standards to the house and conserving the significant aspects of the place.
- iii. Locating the new entry ramp to provide access into the house via the front door ensures that all original external doors are to be retained.
- iv. The ramp is to be located over the existing brick steps with marble treads and terracotta tiled landing of the entry porch to Tulkiyan. The ramp is free standing being supported on concrete piles located in the driveway under the ramp and supported on a timber structure to be placed on the landing. The supports have

- been designed to spread the weight evenly and are located to avoid the marble stairs entirely.*
- v. *No penetrations into the original fabric of the house are required to support the new ramp and all work is reversible.*
 - vi. *The metal ramp is a clearly modern, lightweight structure that will sit over the existing steps and rest on the existing landing. The existing handrail will be retained to provide evidence of the steps under the ramp, and a new handrail will be located on one side only, minimising visual intrusion. This handrail will be attached to the new ramp only and will not be fixed to the house or porch.*
 - vii. *All new works are reversible.*

Amenities Building

- i. *The amenities building is a small, single storey structure located behind the existing house and will not obscure views of the existing house or its significant elements as seen from the Pacific Highway.*
- ii. *The amenities building has been designed to interpret the form, scale, appearance and materials of the original garage and is acceptable.*

Development Control	Complies
19D.6 Outbuildings and garden structures (excluding garages and carports)	
2. No new garden structures or outbuildings including pools, water tanks, gazebos, sheds, stores, cabanas are to be located within the front setback.	YES
3. In considering any application for permission to erect an outbuilding or structure, the following will be considered: i) the location of the proposed structure in relation to the principal building, boundaries and other details of the site. ii) the proposed form, scale, materials and colours of the structure. In this regard, the scale of any outbuilding or structure is to be subservient to the main house, colours and materials should be recessive; and	YES YES

Conclusion on Demolition (KLPP)

The proposed demolition works (including the pruning or removal of trees) will have no more than a minimal impact on the integrity of the heritage item.

Development Control	Complies
19F. DEVELOPMENT IN THE VICINITY OF HERITAGE ITEMS OR HERITAGE CONSERVATION AREAS (HCAS)	
19F.1 Local Character and Streetscape	
General 1. All development in the vicinity of a Heritage Item or HCA is to include a Heritage Impact Statement (HIS). The HIS is to address the effect of the proposed development on a Heritage Item or HCA and demonstrate that the proposed works will not adversely impact upon significance, including any related heritage features within the identified curtilage and setting.	YES

Built Form	
2. Development on sites that either directly adjoin or are in the vicinity of a Heritage Item or an HCA is to have regard to:	
i) the form of the existing building or buildings including height, roofline, setbacks and building alignment;	YES
ii) dominant architectural language such as horizontal lines and vertical segmentation;	YES
iii) proportions including door and window openings, bays, floor-to-ceiling heights and coursing levels;	YES
iv) materials and colours;	YES
v) siting and orientation;	YES
vi) setting and context;	YES
vii) streetscape patterns.	YES
Views	
New development in the vicinity of a Heritage Item or HCA is to demonstrate that it will not reduce or impair important views to and from the Heritage Item from the public domain.	YES

Development Control	Complies
19F.3 Gardens and Landscaping	
Gardens, Setting and Curtilage	
1. Development in the vicinity of a Heritage Item or an HCA is to:	
i) retain original or significant landscape features associated with the Heritage Item or HCA, or which contribute to its setting. In particular, garden settings in the vicinity are not to be adversely affected in terms of overshadowing or physical impacts on significant trees;	YES
ii) retain the established landscape character of the Heritage Item or HCA including height of the tree canopy and density of boundary landscape plantings or otherwise reinstated them in the new development;	YES
iii) include appropriate screen planting on side and rear boundaries.	YES

Conclusion

The proposed change of use from a dwelling house to a house museum with access upgrades, amenities building, and associated works will have a minimal impact on the heritage item and items in the vicinity and is acceptable from a heritage perspective.

The above assessment and relevant provisions have been reviewed. It is agreed that the proposal is satisfactory for the reasons given by Council's Heritage Advisor.

Landscaping

Council's Team Leader – Landscape, Tree and Ecological Assessment commented on the proposal as follows:

KDCP COMPLIANCE TABLE		
Control	Proposed	Complies
Part 4A.2 Building Setbacks		

C12. Side setbacks are to accommodate a pathway and at least 0.6 metres of landscaping width for single storey houses, and 1.1 metres for 2 storey houses.	Dwelling setbacks remain unchanged. The proposed amenities building proposes a historic setback similar to the original garage footprint. There is no opportunity for amenity screen planting adjacent to the site boundary for the proposed amenity building.	YES
C13. Side setbacks are to accommodate shrubs to a height of 3-4 metres for 2 storey houses, and 2-3 metres for single storey houses.	Refer above.	YES
Part 4A.4 Landscaping and Part 13 Tree and Vegetation Preservation		
C1. Landscape proposals are to retain existing trees where possible	Tree removal The proposal includes the removal of Trees 10 and 15: Tree 10 <i>Loropetalum chinense</i> (Chinese Fringe Flower) located adjacent to the existing concrete slab and within the development footprint. The tree/large shrub is a contemporary planting and while in good health and condition typical for the species, and an appropriate species for the heritage context of the garden, the tree is not historically significant and does not provide amenity beyond the site. Tree 15 <i>Prunus serrulata</i> (Flowering Cherry), a small specimen planting located adjacent to the existing brick path and raised garden beds. The tree would otherwise be exempt from requiring approval for removal if not located within a heritage listed property. The tree provides onsite amenity as part of the established garden but does not have historical significance. On the above grounds, removal of Trees 10 and 15 is acceptable. Tree impacts The following trees are potentially impacted by the proposal: Tree 9 <i>Celtis</i> sp (Hackberry) located adjacent to the northern site boundary within the neighbouring property. The tree is a dominant specimen in poor health and condition. The tree	YES

	is in irreversible decline. The proposed amenities building is within the trees Structural Root Zone (SRZ)/Tree Protection Zone (TPZ) and within the footprint of the previous garage. Root mapping has been undertaken with numerous structural roots located. The proposed finished floor level (FFL) is above existing grade on isolated piers which are sensitively located so as not to sever existing structural roots and minimise tree impact. The location of the amenities building creates a high target zone for falling debris as Tree 9 declines in health. The species is exempt from requiring approval for removal under Part 13 of the DCP. It is strongly recommended the strata body of the neighbouring property be contacted to discuss the removal of Tree 9. Recommended consent conditions will require the retention of tree roots and hand digging of proposed piers, to further reduce direct tree impact (Conditions 33, 34 and 36). Tree 11 <i>Stenocarpus sinuatus</i> (QLD Firewheel Tree) located adjacent to the northern site boundary within the neighbouring property. The proposed amenities building and access path are located within the tree's SRZ/TPZ with an encroachment of approximately 18%. Tree sensitive root mapping has been undertaken with the discovery of three minor roots and one structural root. The potential severance of the three minor roots should not adversely impact the trees ongoing health or stability. The structural root is required to be retained. A condition is recommended to this effect (Condition 34). Other trees to be retained Where development encroaches within the TPZ of retained trees adjacent to the northern and eastern site boundaries within the rear garden, potential impact is minimised with the lightweight and elevated GRP walkway on isolated piers, which minimises excavation within the TPZ and is within acceptable thresholds. Conditions are recommended requiring all excavation to be undertaken by hand and tree roots greater than 50mm diameter to be retained (Conditions 33, 34 and 36).	
C2. Tree replenishment and planting to be	The proposal satisfies this Part as existing tree numbers exceed minimum requirements.	YES

<i>provided.</i>		
<i>C3. Landscaping to include tall trees, small trees, shrubs and ground cover. Continuous rows of monoculture planting and high hedging to boundaries is to be avoided.</i>	<i>The existing landscape is to remain. Refer to comments at Part 21.2</i>	YES
<i>C4. Landscape designs are to reflect the prevailing landscape character of the area.</i>	<i>The landscape plan satisfies this control. Refer to comments at Part 21.2</i>	YES
<i>C5. New trees are to be distributed across the site and are to be located to accommodate the mature growth of both new and existing trees.</i>	<i>No new tree planting is proposed. Existing tree numbers exceed minimum requirements.</i>	YES
<i>C6. Hedges near boundaries are not to impact the amenity of adjoining properties by blocking sunlight, bushland or water views or unreasonably shading neighbours' private open space or living areas in winter. Hedges are not to grow to excessive height and are to be maintained at a height below 2 metres.</i>	<i>The existing landscape is to remain.</i>	YES
Part 19 Heritage Items and Heritage Conservation Areas		
19D.3 Gardens and Landscaping – Heritage Items	<i>The existing landscape is to remain. Existing planting where possible is to be transplanted and reinstated after the completion of building works. Historic landscape elements such as the brick path are retained.</i>	YES

	<i>NOTE: The landscape has changed over the years with the planting of many trees that has altered the gardens micro-climate and solar availability.</i>	
Part 21.1 Earthworks and Slope		
<i>C3. Landscape cut or fill should not be more than 600 millimetres above or below natural ground line.</i>	<i>Landscape cut and fill is not proposed.</i>	YES
<i>C4. A minimum 0.6 metres width is required between retaining walls.</i>	<i>No terraced retaining walls are proposed.</i>	YES
<i>C5. Existing ground level is to be maintained for a distance of 2 metres from any boundary.</i>	<i>Minor level changes are proposed within the driveway footprint adjacent to the northern site boundary to accommodate the proposed FFL of the amenities building, which is acceptable on merit.</i>	YES
<i>C8. Retaining walls, excavated and filled areas are to be located and constructed to have no adverse impact on iii) trees and vegetation to be retained on site or on adjoining sites.</i>	<i>The proposal satisfies this control.</i> <i>See comments above at Part 4A.4</i>	YES
Part 21.2 Landscape Design		
<i>21.2 Landscape Design To ensure the landscape design and species selection is suitable to the site its context and considers the amenity of residents and neighbours.</i>	<i>The landscape plan is acceptable as the historic context of the landscape is retained.</i>	YES

Recommendation:

*The application is acceptable subject to recommended conditions (**Conditions 7 – 13, 16, 33 – 37 and 43**).*

The above assessment and relevant provisions have been reviewed. It is agreed that the proposal is satisfactory for the reasons given by Council's Team Leader – Landscape, Tree and Ecological Assessment.

Engineering

Council's Team Leader Development Engineers commented on the proposal as

follows:

Water Management

The development is a Type 1 – Alterations and Additions in a Location 'D' (drains to the rear). The site has an increase in impervious area of 32m². The site is not burdened by easements or restrictions nor is the site within a flood prone area.

*The subject site has a crossfall of approximately 6 metres from the western boundary to the eastern rear boundary. According to Council's mapping system, there is a 225 millimetres pipe within No. 705 Pacific Highway, without a corresponding easement (**Figure 5**). The matter of obtaining an easement as well as upgrading the stormwater disposal within the SRZs of existing trees was discussed with the design engineer. It was agreed that obtaining an easement would be problematic and therefore an alternative stormwater disposal would need to be considered.*

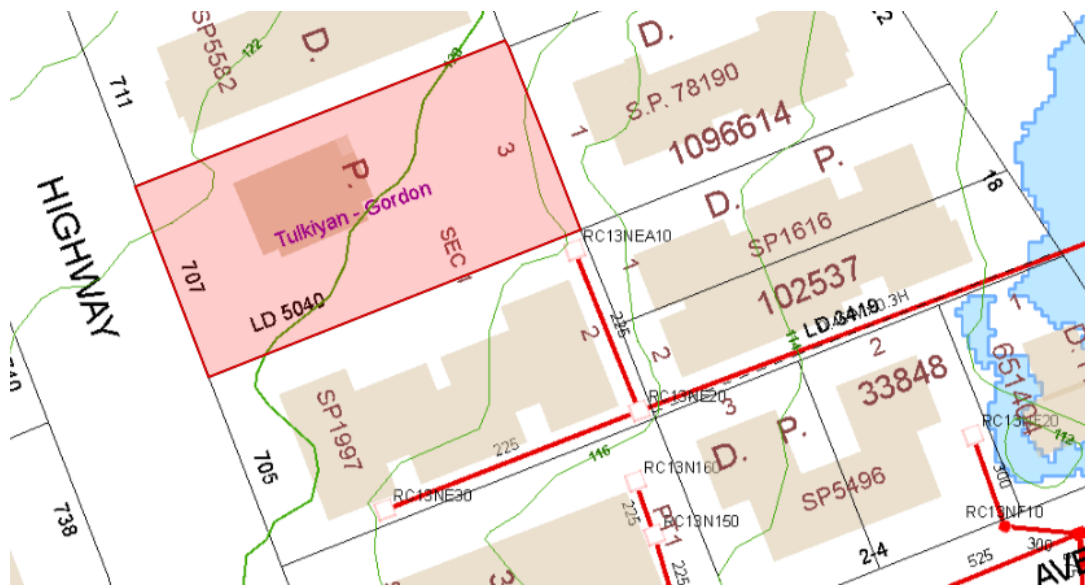


Figure 5: Location of stormwater pipe in adjoining property

Stormwater management plans prepared by Hydracor Consulting Engineers have been submitted. The plans show the proposed rear roof areas directed to a 2,000 litres belowground rainwater tank located in the rear landscaped area with the overflow from the rainwater tank and associated hard paved areas to be directed to a 3.2 metres long absorption trench, which is acceptable.

The absorption trench has been sized as per 1 lineal metre for every 10m² of area draining to it as per Part 24B.5 of KDCP.

A 2,000 litres rainwater tank complies with the requirements of Part 24C.4 of KDCP.

The stormwater system from the existing dwelling will be retained. It is understood that there are multiple kerb outlets along the street frontage providing a discharge point for the main dwelling.

The site falls within a regulated catchment. The proposal includes appropriate stormwater measures to minimise any adverse impacts on the regulated catchment. The proposal is satisfactory in regard to Chapter 6 'Water Catchments' of the State Environmental Planning Policy (Biodiversity and Conservation) 2021.

The proposed development has been assessed against Clause 6.5 (Stormwater and Water Sensitive Urban Design) of Ku-ring-gai Local Environmental Plan (KLEP). As the requirements of Part 24 (Water Management) of KDCP have been met, the proposed development satisfactorily meets the relevant provisions of Clause 6.5 of KLEP.

Vehicular Access and Accommodation

The proposed development involves the conversion of 327m² of the existing building into a house museum, with no off-street parking spaces provided. The traffic report references the guidelines from the “Institute of Transportation Engineers (ITE)” and the Roads and Maritime Services (RMS) “Guide to Traffic Generating Developments” to assess the parking provision for the proposed development.

The site is located within 300 metres of Gordon Train Station and within close proximity to several bus routes (196, 560, 197, 195), meeting the accessibility criteria outlined in the “NSW Government Fact Sheet - Public Transport Accessibility”. The site’s location within a highly accessible public transport corridor suggests reduced reliance on private vehicles.

On-street parking provision includes 17 spaces along Pacific Highway (available for bus parking after 10am weekdays and all weekend) and 27 spaces on Ravenswood Avenue. A recent parking survey conducted from 10am to 5pm indicated that on average, 52% of on-street spaces were occupied, leaving at least 21 vacant spaces at all times. This aligns with the findings of the RMS Guide regarding minimal parking pressure in areas with high public transport accessibility.

According to the “Institute of Transportation Engineers (ITE) Trip Generation Manual”, museum-type developments typically generate lower parking demands compared to other commercial or residential uses. Therefore, the absence of dedicated off-street parking is considered acceptable under ITE guidelines and is consistent with local standards that prioritise public transport use given the close proximity to the train station interchange.

Given the available public transport options and the adequate on-street parking capacity, the proposed development is unlikely to have significant adverse impacts on parking supply or the surrounding road network. As such, the proposal does not require additional off-street parking.

Council’s Strategic Traffic Engineer

In the absence of a specific parking rate for museum houses in the TfNSW guide, the ITE rate is a good starting point. The current dwelling is not in use, existing traffic generation at peak times does not need to be considered as outlined in Section 6.1. Whilst not strictly relevant to the proposed development, the ACT Parking and Vehicular Access Guideline (2002) could be used as a guide. The Guideline provides the following parking requirements for a “Cultural Facility”:

Schedule 2 - Parking provision rates for Commercial Land Use Policy areas

Land Use	Commercial A Civic Centre	Commercial B Town Centres	Commercial C Group Centres	Commercial D Local Centres	Commercial E Corridors & Office Sites
Bulky goods retailing	2 spaces/100m ² GFA		2.5 spaces/100m ² GFA	N/A	N/A
Business agency	4 spaces/100m ² GFA		5 spaces/100m ² GFA		6 spaces/100m ² GFA
Car park			1 space/peak shift employee		
Child care centre		1 space/centre plus 2 spaces per 15 child care places for employee parking plus visitor parking as follows: 2 spaces - < 30 child care places 3 spaces - 30-59 child care places 4 spaces - 60-90 child care places plus 1 pick-up/drop-down bay per 10 child care places			N/A
Civic administration	As per Office		N/A	N/A	N/A
Club	Excluding precinct e 5 spaces/100m ² GFA up to 5000m ² plus 10 spaces/100m ² GFA above 5000m ² Precinct e 10 spaces/100m ² GFA	Precincts a & b 5 spaces/100m ² GFA up to 5000m ² plus 10 spaces/100m ² GFA over 5000m ² Precinct e 5 spaces/100m ² GFA up to 500m ² plus 10 spaces/100m ² GFA over 500m ²	10 spaces/100m ² GFA	N/A	15 spaces/100m ² GFA
Communications facility				N/A	1 space/peak shift employee
Community activity centre				4 spaces/100m ² GFA	N/A
Community theatre				1 space/3 seats	N/A
COMMUNITY USE	N/A	N/A	N/A	As per Community Facility Land Use Policies Schedule	As per Community Facility Land Use Policies Schedule
Corrections facility	N/A	Subject to individual assessment	N/A	N/A	N/A
Craft workshop		3 spaces/100m ² GFA		N/A	N/A
Cultural facility		0.5 spaces/100m ² GFA	1 space/100m ² GFA	2 spaces/100m ² GFA	
Defence installation	N/A	N/A	N/A	N/A	Subject to individual assessment

Even at the Local Centre rate, the requirement would be 6-7 spaces, so not too different to the ITS or the KDCP rate for Business.

In terms of traffic generation, there is unlikely to be any AM or PM peak hour traffic generation impacts as the Operational Plan of Management states that it will be (only) open for:

- Events - no more than 12 times a year for no more than 4 hours public access per event.
- Public Access – supervised public access to the gardens and house would occur on no more than 14 times a year and only within the hours for entry of 10am to 4pm.

In terms of parking, the surveys show there is parking available on Pacific Highway and Ravenswood Avenue after 10am, and Public Access visitors can also park in any 2P spaces on street or in the Wade Lane car park and walk, if needed.

Traffic Impact Assessment

The existing site, a residential dwelling, generates 9 daily trips and 1 peak hour trip, as per the Roads and Maritime Services' "Guide to Traffic Generating Developments – 2002". The proposed change of use to a house museum (327m²) was assessed using the ITE trip generation rates, as no specific guidelines exist for house museums in the RTA's guide. The proposed development is estimated to generate in the order of 1 peak hour vehicle trips in the area. Such level of traffic represents one vehicle movement every 60 or so minutes during peak hours in the surrounding road network.

Waste Management

No waste report has been submitted. It is expected that minimal additional waste will be generated from this development. Any additional waste will be managed using the existing waste bins. Separate general waste and recycling bins will be provided in the gardens. All waste generated from operations must be disposed of in the designated bins.

Recommendations

The proposal is acceptable from an engineering perspective subject to a condition requiring certification of drainage works prior to issue of the Occupation Certificate (Condition 45).

The above assessment and relevant provisions have been reviewed. It is agreed that the proposal is satisfactory for the reasons given by Council's Team Leader Development Engineers.

Building

Council's Senior Building Surveyor commented on the proposal as follows:

An Access report has been submitted. The proposal in general would be able to achieve compliance with the BCA requirements.

A detailed BCA assessment will be undertaken by the Certifier at the CC stage.

The proposal is acceptable from a building perspective, subject to conditions (**Conditions 15, 46 and 54**).

External Referrals

Heritage Council of NSW (Department of Climate Change, Energy, the Environment and Water)

Under the provisions of Section 4.46 of the Environmental Planning and Assessment Act 1979, the proposal is Integrated Development on the basis that approval from the Heritage Division is required under Section 60 of the *Heritage Act 1977*.

Accordingly, the development has been referred to the Heritage Division, who advised that the application is acceptable. General Terms of Approval (GTAs) have been provided and are contained within **Conditions 56 – 65**.

STATUTORY PROVISIONS

Heritage Act 1977

The assessment of the development proposal for 'Tulkiyan' against the specific requirements of the *Heritage Act 1977* (NSW) and the *Environmental Planning and Assessment Act 1979* (EPA Act) is required due to the item's listing as a State Heritage Item (SHR No. 01733) and as a heritage item (No. I11) within the KLEP.

The change of use to a house museum directly addresses and aligns with the objects of the Heritage Act in proposing an adaptive reuse and conservation, providing a viable, long-term use for the significant item.

The proposed change of use, alterations to the house and grounds, and new construction (amenities building) all constitute 'development' on a State Heritage Register item, necessitating a Section 60 approval. The GTAs provided by the Heritage Division fulfill this requirement.

The proposal is consistent with the conservation principles of the Heritage Act. The physical alterations (e.g., ramps, new building) maintain the integrity of the item as an "intact example

of a fine Arts & Crafts suburban villa".

Environmental Planning and Assessment Act 1979

The proposal is Integrated Development because a DA under the EPA Act is required, and it concurrently requires the Section 60 approval under the *Heritage Act 1977* from the Heritage Division. The Council has referred the DA to the Heritage Division, and the Division has provided the necessary GTAs (**Conditions 56 – 65**) and have been included in the recommendations of this report in accordance with Section 4.47.

State Environmental Planning Policy (Resilience and Hazards) 2021

Chapter 4 Remediation of land

The provisions of Chapter 4 require Council to consider the potential for a site to be contaminated. The subject site is unlikely to contain any contamination given its historical uses for residential development and further investigation is not warranted in this case.

State Environmental Planning Policy (Transport and Infrastructure) 2021

Division 17 Roads and traffic

The property has a frontage to a classified road, being Pacific Highway and consideration is required pursuant to Division 17 Clause 2.119 'Development with frontage to classified road.' The proposal achieves the objectives of this section as:

- i. The low traffic generation (estimated 1 peak hour vehicle trip) indicates a minimal impact on the function of the Pacific Highway. The development primarily relies on public transport and existing on-street parking, avoiding the creation of new high-volume access points or a significant surge in vehicle movements that would compromise the highway's operation.
- ii. The proposed development is a house museum (Information and Education Facility), which is generally not considered sensitive to traffic noise or vehicle emissions compared to residential uses. It retains the existing building structure, which may already possess some ameliorating qualities.

The development meets the provisions of subclause (2) for the following reasons:

- i. The proposal does not provide off-street parking, and the traffic generation is extremely low (1 peak hour trip), relying upon the existing access and non-vehicular transport. While the site fronts the Pacific Highway, the proposal minimises vehicular access directly from the highway by promoting the use of public transport (Gordon Train Station and bus routes within 300 metres) and retention of the existing access.
- ii. No new or modified vehicular access is proposed. The low volume of traffic (1 peak hour trip) minimises potential conflicts.
- iii. The change of use to a house museum with associated upgrades is unlikely to generate significant smoke or dust that would affect the highway.
- iv. The low volume (1 vehicle movement every hour in peak periods) ensures the classified road's safety, efficiency, and operation are not adversely affected.
- v. As an Information and Education Facility (house museum), it is less sensitive than residential or other high-occupancy uses.

The application does not require Transport for NSW (TfNSW) concurrence as it does not propose any additional vehicle access points to the classified road and does not propose an increase in parking spaces provided on site. The proposed development is estimated to

generate 1 peak hour vehicle trip (i.e., 1 vehicle movement every 60 or so minutes during peak hours). Since 1 vehicle per hour is less than the threshold of 50 motor vehicles per hour, the development does not meet the size or capacity test to be defined as traffic-generating development under Section 2.122. Therefore, the development is not required to be referred to TfNSW under Section 2.122

State Environmental Planning Policy (Biodiversity & Conservation) 2021

Chapter 4 Koala habitat protection 2021

Chapter 4 of the SEPP is applicable as the site is located within the Ku-ring-gai Local Government Area (LGA which is within the Central Coast Koala Management Area. Due to the nature of the development, being for a change of use and ancillary works on a site that is already developed with no biodiversity values, it will not interfere with the aims of this Chapter.

Furthermore, in accordance with Clause 4.10, which applies to land with an area less than 1 hectare and does not have an approved Koala Plan of Management (KPOM), Council is not prevented from granting consent if the land does not have an approved KPOM or that Council is satisfied that the land is not core koala habitat. Due to its residential zoning and that the site does not include any koala use tree species, Council is satisfied that the site is not a core koala habitat.

Chapter 6 Water catchments

This chapter applies to the whole of the Ku-ring-gai LGA. The north-eastern part of the LGA is in the Hawkesbury Nepean Catchment and the southern part in the Sydney Harbour Catchment. The site, being in Gordon, is located within the Sydney Harbour Catchment. The aims of the Plan are to establish a balance between promoting a prosperous working harbour, maintaining a healthy and sustainable waterway environment, and promoting recreational access to the foreshore and waterways by establishing planning principles and controls for the catchment.

The development, a change of use to an Information and Education Facility (house museum) with associated upgrades, achieves the controls under Chapter 6 of the SEPP by incorporating specific stormwater management and site design measures.

The development addresses Clause 6.6 Water Quality and Quantity primarily through its comprehensive stormwater management upgrades, aiming for a Neutral or Beneficial Effect (NorBE) on water quality and managing water quantity. This is achieved via a 2,000 litres below-ground rainwater re-use tank and an absorption trench (3,200 millimetres x 600 millimetres x 600 millimetres). These systems treat and manage runoff, ensuring the water quality entering a natural waterbody is as close as possible to NorBE. As the site is in the Sydney Harbour Catchment, Clause 6.6(3) applies, meaning NorBE is addressed by the general controls, not the specific Sydney Drinking Water Catchment Part 6.5 requirements.

Clause 6.7 Aquatic ecology is addressed through measures to prevent erosion and sedimentation, and the minimal impact on existing vegetation. The inclusion of a sediment control inlet pit adjacent to the absorption trench and the fully sealed roof drainage system for the new amenities building prevent loose soil and sediment from entering the drainage system or natural waterbodies, thus minimising erosion and sedimentation. This combined with conditions of consent ensures adequate erosion and sedimentation management and limiting impact upon existing vegetation.

The development is not located within a flood-prone area, which significantly reduces its impact on flooding controls. The proposal does not involve foreshore land. As such, Clause 6.8 'Flooding', 6.9 'Recreation and public access' and 6.10 'Total catchment management' are not directly relevant to the development.

Ku-ring-gai Local Environmental Plan 2015 (KLEP 2015)

Part 1 Preliminary:

Aims of the KLEP

The Ku-ring-gai Local Environmental Plan 2015 is the primary planning instrument that applies to the subject site. In summary the relevant aims seek to:

(a) to guide the future development of land and the management of environmental, social, economic, heritage and cultural resources within Ku-ring-gai,

(f) to recognize, protect and conserve Ku-ring-gai's indigenous and non-indigenous cultural heritage,

(l) to facilitate development that complements and enhances amenity for residential uses and public spaces,

(o) to protect the character of low density residential areas and the special aesthetic values of land in the Ku-ring-gai area.

The relevant aims of the KLEP are achieved because:

- The change of use to a house museum is a sympathetic adaptive reuse that provides a viable, long-term economic purpose for the heritage item. This use justifies the ongoing maintenance and resource allocation required to keep the building and its original contents.
- The proposal is guided by a conservation management plan (CMP) and has been assessed against its policies. This ensures that the development and subsequent management of the property align with best-practice heritage principles, effectively guiding the future development of the item.
- The adaptive re-use protects and conserves the non-indigenous cultural heritage of Tulkiyan House which is an important, intact example of a fine Arts & Crafts suburban villa, including its largely intact interior and original contents.
- The new amenities building is sited on the footprint of the former garage and is designed to interpret the original garage's form, scale, and materials.
- The proposal protects residential amenity by the restricted use. The museum will only be open for supervised public access a maximum of 14 times a year and host a maximum of 12 events per year. This minimal, low-frequency use ensures that traffic, noise, and general disturbance are within acceptable limits for the surrounding R4 High Density Residential zone.
- The new amenities building is designed to complement the neighbour's amenity by having no windows or openings on the northern elevation facing the adjoining site, directly addressing privacy and overlooking concerns. The structure's scale is subservient to the main house, and new materials are carefully selected (e.g., lightweight, recessive metal ramp) to ensure they are clearly modern but do not visually dominate or compete with the original heritage item.
- The development facilitates a house museum, transforming a once private dwelling into a public space for education and cultural benefit. The accessibility upgrades

(ramps, accessible toilet) enhance amenity for the public by allowing equitable access to the state listed heritage item.

- The heritage item itself forms a part of the special aesthetic values and character of Ku-ring-gai. The change of use and alterations have been designed to maintain the integrity of the prominent elevations and streetscape contribution. The amenities building is located behind the house and is a small, single-storey structure that will not obscure views of the existing house or its significant elements as seen from the Pacific Highway.

Part 2 Permitted and prohibited development

Clauses 2.1 – 2.3 Zoning & permissibility

The site is zoned R4 High Density Residential. The proposed development is defined as a 'information and education facility', which is not permitted in the subject zone. Despite this, due to the site containing a state heritage item, the development is permitted in accordance with the heritage incentive clause within Clause 5.10 of KLEP. Refer to Clause 5.10 discussion for further information.

The objectives of this zone are:

- *To provide for the housing needs of the community within a high density residential environment.*
- *To provide a variety of housing types within a high density residential environment.*
- *To enable other land uses that provide facilities or services to meet the day to day needs of residents.*
- *To provide for high density residential housing close to public transport, services and employment opportunities.*

The development is consistent with objective three, as it provides for another land use that provides an educational service for the community. This respects the existing development, which includes a state heritage listed item to be converted to an information and education facility, allowing for the item to be maintained and used for public benefit. Despite this, the proposal is permitted in accordance with Clause 5.10 of KLEP and is consistent with the objectives provided within that clause. Refer to Clause 5.10 discussion for further information.

The proposed development therefore upholds the zone objectives.

Part 4 Principal development standards

Development standard	Proposed	Complies
CI 4.1 – Minimum subdivision lot size: Minimum Lot Size – 1200m ²	No subdivision proposed	N/A
CI 4.3 – Height of buildings: Maximum Building Height - 11.5 metres	The proposed alterations and additions do not result in a building height that exceeds the existing building height or the maximum building height of 11.5 metres.	YES

Development standard	Proposed	Complies
	The amenities' structure has a maximum height of 3.66 metres and complies.	
CI 4.4 - Floor space ratio (FSR): Maximum Floor Space Ratio - 0.85:1 Note: Subclause 2C Calculation 1:1 Gross Floor Area = 1828.6 m ²	The GFA is increased by 23.6m ² as a result of the amenities building. The total GFA does not meet or exceed 1828.6m ² and complies.	YES

Part 5 Miscellaneous provisions

Clause 5.10 – Heritage conservation

The assessment of the proposed development for 'Tulkiyan' (SHR No. 01733, KLEP item I11) against all provisions of Clause 5.10 (Heritage conservation) has been undertaken. The development largely aligns with the objectives and procedural requirements of the clause, although the physical alterations introduce specific points of concern regarding the fabric.

The objectives of this clause are:

- (a) *to conserve the environmental heritage of Ku-ring-gai,*
- (b) *to conserve the heritage significance of heritage items and heritage conservation areas, including associated fabric, settings and views,*
- (c) *to conserve archaeological sites,*
- (d) *to conserve Aboriginal objects and Aboriginal places of heritage significance.*

The development meets these objectives for the following reasons:

- i. The change of use to an information and education facility (house museum) is an act of sympathetic adaptive reuse that ensures the long-term conservation and interpretation of the item's state significance, including its intact interior, original contents, and garden setting. The design seeks to conserve significant elements, such as retaining the original front steps under the new ramp.
- ii. There is no indication of significant Aboriginal heritage or impact on known archaeological sites, beyond the typical need to be cautious during ground disturbance. The removal of the existing non-original concrete slab is an excavation, but its documented history as a former garage base suggests a low risk of discovering significant pre-colonial or early colonial relics.

Development consent is sought in accordance with subclause (2)(a)(i). The subject site contains a heritage item, is located within 100 metres of an Item, and is not within a heritage conservation area. The site is identified as containing a heritage item of state significance, being "Tulkiyan", dwelling house'.

The consent authority must consider the effect of the proposed development on the heritage significance of the item in accordance with subclause (4). The change of use ensures the house's continued interpretation and conservation, directly addressing its significance as a preserved example of B.J. Waterhouse's work and the Donaldson family lifestyle. The adverse effect of the covering of two existing steps with imported fill and the removal of the original concrete slab are acknowledged. However, the overall conclusion is that these impacts are minimal and are necessary to achieve the overriding goal of equitable access and public amenity required for the conservation-based adaptive reuse. The design confirms

the ramps are reversible, further mitigating long-term harm. The development does not result in any adverse effects on the heritage item and has been documented in the Statement of Heritage Impact (SOHI) and is confirmed by the referral to and subsequent approval by the Heritage Division.

There are two CMPs for Tulkiyan, the 1998 Original Conservation Management Plan (CMP) and the 2021 Draft Conservation Management Plan (CMP). Both reports outline the detailed technical steps and prioritisation for works and how these works must be professionally managed and undertaken.

Clause 5.10(10) allows the consent authority to grant consent for a development purpose that would otherwise be prohibited by the zoning (in this case, the change of use to a museum in the R4 zone), provided key criteria are satisfied. The criteria and how the development achieves the criteria is provided below:

(a) The conservation of the heritage item or Aboriginal place of heritage significance is facilitated by the granting of consent.

The conservation of Tulkiyan an important, intact example of Arts & Crafts architecture with a largely intact interior and original contents would be directly facilitated by the granting of this consent. The change to an Information and Education Facility (house museum) provides a viable, long-term economic purpose for the house and its contents. This use justifies the maintenance and resource allocation required to keep the building and its original furnishings. Without a viable use, the property and its contents would face long-term decay or pressure for unsympathetic alteration, a core principle derived from established heritage case law which favours sympathetic adaptive reuse to ensure conservation.

(b) The proposed development is in accordance with a heritage management document that has been approved by the consent authority.

There is a CMP and a Statement of Heritage Impact which have guided the design. The Statement of Environmental Effects (SEE) specifically addresses this compliance requirement, confirming that the proposal is in accordance with the heritage management guiding documents for Tulkiyan.

The SEE primarily relies on the 2021 Draft Conservation Management Plan (CMP) as the guiding heritage management document, despite the earlier 1998 document's existence. The SEE notes that the Plan of Management (2001) refers to the older 1998 CMP, but the SEE itself explicitly relies on the Draft CMP (2021) as the current best practice guide. The Draft CMP establishes a revised Statement of Significance that expands the period of significance to 1913-1994 (the full period of Donaldson family occupancy), reinforcing the value of the house, its contents, and subsequent alterations as a time-capsule and an archive.

The proposal is assessed as being in accordance with the key conservation policies by demonstrating that the changes facilitate the preferred use while minimising impact on the cultural significance for the following reasons:

- i. The proposal formally seeks a change of use to an Information and Education Facility (house museum), which is directly consistent with the CMP's preferred use and Margaret Donaldson's bequest for a worthwhile community enterprise (Policy 10).
- ii. The proposed works are designed to be reversible to minimise the impact on significant fabric. Changes are limited to those necessary for museum operation and equitable access (Policy 5 of Draft CMP).

- iii. Access is limited to the ground floor only. The ramp is a lightweight, freestanding structure that avoids physical attachment to the original, "Exceptional significance" entry porch fabric (Policy 32 of Draft CMP).
- iv. The new amenities building is constructed on the former garage site and is designed to interpret the former garage (including form, materials, and detailing). This demonstrates an adherence to the policy of finding compatible and interpretive adaptation (Policy 3 & 48 Draft CMP).
- v. The removal of the metal garden shed is proposed because it is a later addition graded as Intrusive in the Draft CMP (Policy 16).
- vi. The property is owned by Ku-ring-gai Council and managed by the Historic Houses Association of Australia (HHA), a specialist heritage organisation, fulfilling this management requirement (Policy 23 of Draft CMP).

The proposal also addresses specific physical alterations by referencing the grading of components within the CMPs:

- i. The ramp is freestanding and uses lightweight, recessive materials (metal/GRP grating) to sit over the existing steps, avoiding alteration or removal of "Exceptional" fabric, which complies with Policy 12.
- ii. Offset hinges provide necessary wheelchair clearance (795-800 millimetres) with minimal alteration; the original hinges are stored, and the work is reversible, upholding the principle of minimal intervention.
- iii. The SEE argues the slab is actually of Moderate significance (as it has been modified from the original garage footprint) and must be removed as it is decayed and unsuitable for the new amenities block. The impact is mitigated by building the replacement amenities block in the same location to honour the historical context (Policy 48).

The proposal has been subject to the Integrated Development process and has received GTAs from the Heritage Division ensuring it is carried out in accordance with an approved heritage management regime. The development is in accordance with the guiding CMP principles by adopting an approach of compatible use, minimal and reversible intervention, and strategic placement of new elements to maintain the overall heritage significance.

(c) The consent to the proposed development would require that all necessary conservation work identified in the heritage management document is carried out.

The granting of consent will be conditioned to ensure that any necessary conservation works identified in the CMP and the GTAs are completed. The use of the heritage incentive clause enables the essential conservation works to be undertaken as a mandatory condition of the consent.

(d) The proposed development would not adversely affect the heritage significance of the heritage item, including its setting.

While the overall purpose enhances significance, certain physical elements pose potential harm, which must be mitigated to meet this criterion:

- i. The use of lightweight, reversible metal ramps installed over the main entry steps meets the standard of minimal adverse impact. The Statement of Heritage Impact (SOHI) confirms "*No penetrations into the original fabric of the house are required,*" thereby preserving the exterior fabric and architectural character.
- ii. The new amenities building's design has been refined to be a small, single storey structure located at the rear, designed to interpret the form of the original garage. It is

deemed acceptable because it will not obscure views of the existing house or its significant elements as seen from the Pacific Highway, thus preserving the item's streetscape contribution and setting.

- iii. The proposal to adjust the ground level and cover two existing steps will have no more than a minimal impact on the integrity of the heritage item. This localised impact is acceptable and necessary to achieve the provision of equitable access required for the public museum use, which itself facilitates the conservation goal.

(e) The proposed development would not have any significant adverse effect on the amenity of the surrounding area.

The amenity impact is minimised by the proposed limited hours of operation (14 public access days and 12 events per year) and the supervised nature of the use. The building is a heritage house in an R4 High Density Residential zone, and the low frequency, supervised operation is compatible. The new amenities building is located behind the house and designed with no windows or openings on the northern side elevation presenting to the adjoining site, which directly addresses potential privacy, and amenity impacts on the immediate neighbour, ensuring the control is met.

Part 6 Additional local provisions

Clause 6.1 – Acid sulfate soils

The subject site is identified as Class 5 Acid Sulfate Soils. The proposal does not include earthworks below 5 metres AHD within 500 metres of Class 1, 2, 3 or 4 land and does not include the lowering of the watertable on adjacent Class 1, 2, 3 or 4 land. The proposal is satisfactory in this regard.

Clause 6.2 – Earthworks

The proposed development will not restrict the existing or future use of the site, adversely impact on neighbouring amenity, the quality of the water table or disturb any known relics. Additionally, the fill to be removed will be disposed of appropriately.

Clause 6.3 – Biodiversity protection

The site is not mapped as land comprising biodiversity significance.

Clause 6.4 – Riparian land and waterways

The site is not mapped as riparian land and waterways.

Clause 6.5 – Stormwater and water sensitive urban design

The objectives of this clause which seeks to minimise the adverse impacts of urban water on the site and within the catchment have been considered. The stormwater design adequately manages water quality and control discharge volumes and frequency, subject to **Conditions 1 & 45**.

Ku-ring-gai Development Control Plan (KDCP)

Part 1A.5 General aims of the DCP

The proposed development has been assessed against the general aims of this DCP and is found to be acceptable in all relevant respects for the reasons given throughout this report.

Sections of the DCP relevant to the proposal include:

Section A

Part 2 – Site Analysis

Part 4 – Dwelling Houses

Section B

Part 15 – Land Contamination

Part 19 – Heritage and Conservation Areas

Part 20 – Development near rail corridors and busy roads

Section C

Part 21 – General Site Design

Part 22 – General Access and Parking

Part 23 – General Building Design and Sustainability

Part 24 – Water Management

Part 25 – Waste Management

Section A

Part 2: Site analysis

The table below addresses the assessment criteria contained under Section A, Part 2 – **Site Analysis**.

DCP COMPLIANCE TABLE SECTION A – Part 2: Site analysis		
Development control	Proposed	Complies
Part 2 Site Analysis		
Development applications are to contain a site analysis	A site analysis was not provided, however sufficient information regarding the site and its context was provided with the application.	YES

Part 4: Dwelling Houses

The proposal is not for the use of a dwelling house but does however comprise a change of use of the existing historical dwelling house to an information and education facility. The proposed works have been assessed in accordance with the controls in Part 4 relating to dwelling houses due to the residential zoning and as no specific controls relating to the proposed use are available within the DCP in order to assist in the merit assessment of the application

DCP COMPLIANCE TABLE SECTION A – Part 4 Dwelling houses		
Development control	Proposed	Complies
4A – Site Design		
4A.1 Local Character and Streetscape		
Visual Character Design components of new development are to be based on the existing predominant and high quality visual character of the local neighbourhood.	The proposed components are complementary to the existing development and do not detract from the visual character of the heritage item.	YES

DCP COMPLIANCE TABLE SECTION A – Part 4 Dwelling houses		
Development control	Proposed	Complies
The appearance of the dwelling is to maintain the local visual character by considering the following elements: i) visibility of on-site development when viewed from the street, public reserves and adjacent properties; and ii) relationship to the scale, layout and character of the tree dominated streetscape of Ku-ring-gai.	The design of the proposal maintains the local visual character.	YES
The prominent and high quality characteristics of the neighbourhood are to be identified and considered as part of the site analysis.	The supporting documentation addresses these matters.	YES
Public Domain and Communal Space Development is to integrate with surrounding sites by: i) being of an appropriate scale retaining consistency with the surrounds when viewed from the street, public domain or adjoining development and not exceeding two storeys; ii) minimising overshadowing; and iii) integrating built form and soft landscaping (gardens and trees) within the tree canopy that links the public and private domain throughout Ku-ring-gai.	The proposed works are of an appropriate scale, minimise overshadowing and integrate built form and landscaping.	YES
4A.2 Building Setbacks		
Building Line (Front Setback)		
The location of development on the site is to demonstrate its consideration of: i) The existing setback of adjoining properties; ii) The setback patterns of its street block; and iii) Council’s minimum and average setback requirements.	The location of the development responds to the existing setbacks of the heritage item and respects the setbacks of surrounding development.	
<u>Single storey</u> Low side – 9 metres (minimum) High side – 12 metres (minimum)	The new amenities building is set back behind the existing building line. The proposed ramp extends 670 millimetres within the existing setback line but remains compliant with a 12.2 metres setback and comprises a minor element which is not perceived from the road. The development complies with this requirement. No new two-storey elements are proposed.	
<u>Two storey</u> Low side – 9 metres (11 metres average) High side – 12 metres (14 metres average)		
Building Line (Rear Setbacks)		

DCP COMPLIANCE TABLE SECTION A – Part 4 Dwelling houses		
Development control	Proposed	Complies
For sites with a depth greater than 48 metres, a minimum 12 metre rear setback is to be provided.	Site depth = 59.815 metres The setback to the amenities building is 20 metres, with 18.4 metres to the slab.	YES
Side setbacks are to accommodate a pathway and at least 0.6 metres of landscaping width for single storey buildings, and 1.1 metres for 2 storey houses. Where sites are of greater widths (over 20 metres) larger side setbacks should be progressively provided.	600 millimetres setback provided between the new amenities building and the northern side setback in accordance with Heritage Advisor recommendations.	YES
Side setbacks are to accommodate shrubs to a height of 3-4 metres for two storey houses, and 2-3 metres for single storey houses.	Landscaping is to remain as existing, being contributory to the heritage item. Setbacks presently contain trees and shrubs.	YES
4A.3 Built-Upon Area		
Max BUA 50% (914.3m ²)	BUA including proposed works = approximately 482m ² (26.4%)	YES
For alterations and additions, on sites where the existing BUA is greater than the maximum permitted by control 1, the maximum BUA is the existing BUA, however, a reduction in BUA is desirable.	The existing site does not exceed the maximum BUA.	YES
The proposal is to include a reasonable provision of built elements, normally associated with a residential property, such as pathways, and show consideration of these elements at an early stage of the design process	The proposal retains existing external pathways, stairs and gravel areas, whilst adding additional pathways, ramps and a terrace area to improve accessibility on the site.	YES
The BUA of the front setback is to be maximum 30%	The BUA of the front setback is to remain as existing (82m ² , 20.1%)	YES
4A.4 Landscaping		
Landscape proposals are to retain existing trees, where possible. This may be achieved by: i) minimising changes to existing ground levels; ii) confining building works where appropriate to pre-existing building footprints.	Landscaping is related to the heritage significance and is to largely be retained. The proposed Landscape Plan and design and is satisfactory given the heritage context. Council's Team Leader – Landscape, Tree and	YES
Landscaping is to include tall trees, small trees, shrubs and ground covers.		
Landscape designs are to reflect the prevailing landscape character of the area		

DCP COMPLIANCE TABLE SECTION A – Part 4 Dwelling houses		
Development control	Proposed	Complies
and relate to the existing streetscape in terms of scale and planting style.	Ecological Assessment has supported the application in relation to these controls, subject to conditions (Conditions 33, 34 and 36). The assessment by the referral officer is concurred with.	
Tree replenishment		
Less than 850m ²		
850m ² to 1,000m ²		
1,001m ² to 1,500m ²		
Over 1,500m ²		
3 trees		
5 trees		
7 trees		
10 trees or as directed		
4C – Building Design and Sustainability		
4C.1 Building Envelopes		
The maximum height of a dwelling is 9.5m (including any garage, basement or the like) and present as a 2 storey dwelling house.	Dwelling to remain as existing. Amenities building is to have a height of 3.66 metres which complies.	YES
The following matters are to be considered with regard to the potential impact on neighbouring properties and local character: i) opportunities to minimise overshadowing of living and private open space areas and solar panels; ii) opportunities to minimise overlooking of living and private open space areas; iii) opportunities to minimise adverse impacts on any significant bushland, or distant views; iv) the relationship with the streetscape.	The amenities building does not result in any adverse overshadowing impacts or overlooking/privacy impacts. There are no windows on the northern side elevation and the adjoining RFB is set back approximately 6.5 metres from the side boundary with a driveway between. Trees and vegetation also line this boundary, providing further screening.	YES
Development is to avoid the creation of an overbearing effect upon adjoining development by: i) ensuring appropriate side setbacks and landscaping are incorporated in the design; ii) ensuring all built structures are within the building height plane as illustrated in Figure 4C.1-2 of the DCP (4m @ 45°); iii) the relationship with the streetscape.	Given the large setback of the new structure (33.4 metres) and being located behind the existing building, the amenities building will not be easily perceived from the street. The structure falls within the building height plane, given it has a height of less than 4 metres.	YES
4C.2 Building facades		
Extensive blank or unarticulated walls to street frontages will not be permitted.	Not proposed.	YES

DCP COMPLIANCE TABLE SECTION A – Part 4 Dwelling houses		
Development control	Proposed	Complies
All external facades are to be articulated to reduce the apparent building mass and present a human scale. This may be achieved through the use of bay window openings, window awnings, chimney and alcove features, verandas, pergolas, balconies, entry porches, staggered wall planes, a combination of materials and finishes, decorative architectural elements including brick corbelling, banding and recesses.	The amenities building is of a small scale and uses appropriate articulation.	YES
The maximum length for an unrelieved wall is 12m.	Length of side elevation of amenities building is 6 metres.	YES
Where walls exceed 4m in height, the maximum length for an unrelieved wall is 8m.	Amenities building walls are less than 4 metres in height.	YES
Side elevations are to avoid unrelieved walls. This may be achieved by: i) dividing walls into sections, bays or modules; ii) separating wall sections with recesses or courtyards.	The amenities building is of a small scale and uses appropriate articulation.	YES
Alterations and additions to an existing dwelling are to be: i) designed so that they are integrated into the existing building; ii) result in the new and old structures appearing as one building from the street. This may be achieved through the choice of materials, detailing, building proportion and configuration.	Minor alterations proposed to the existing building (entry ramp) are proposed. The alterations are integrated appropriately and are not prominent features when viewed from the street to ensure the heritage significance of the building is not adversely impacted.	YES
Building design is to integrate soft landscaping and natural site features and make provision for tall shrub plantings.	The site is sufficiently landscaped and is to largely remain as existing. Some landscaping works are proposed, including relocation of existing plants which contribute to the heritage significance.	YES
4C.3 First Floor Design and Roof Forms		
Roof line		
Roof structures are to be designed to minimise bulk and overshadowing of neighbouring buildings and open spaces by:	The amenities building features a gable roof which reflects the roof of the existing building.	YES

DCP COMPLIANCE TABLE SECTION A – Part 4 Dwelling houses		
Development control	Proposed	Complies
i) considered selection of material, colour and pitch; ii) use of low-angled pitched roofs providing that they are compatible with existing development and the streetscape character; or iii) inclusion of habitable rooms within the roof space.	The roof pitch is low angled at 23° and is corrugated Zincalume with timber end frames to match the house. The Heritage Advisor supports the roof design. The proposed roof design is considered appropriate and sympathetic to the heritage significance of the site and the referral officer's comments are concurred with.	
Gables		
Unless otherwise consistent with the form of development within the immediate locality, gables are: i) to be positioned a minimum of 0.2m below the main roof ridge height; ii) not to occupy any more than 40% of the face of any gable wall and not occupy more than 20% of the face of any roof or slope for a gable window; iii) not extend beyond the external wall of the dwelling.	The gable roof is measured 1.1 metres in height from roof ridge to bottom end of gable. The Heritage Advisor supports the roof design as it respects the existing roof design of the house. The proposed roof design is considered appropriate and sympathetic to the heritage significance of the site and the referral officer's comments are concurred with.	YES
Mechanical equipment		
Plant and equipment is to be integrated into the overall design of the roof and be contained within the roof form or screened behind parapet walls. These elements include lift overruns, plant equipment and air conditioning.	No mechanical equipment proposed on roofs.	YES
4C.5 Solar Access		
Solar access to habitable areas, recreational space and solar collectors on the site and on neighbouring sites is to be preserved by: i) consideration of siting and orientation of buildings; ii) use of setbacks which increase with building heights;	The works do not result in the loss of solar access to neighbouring sites. Solar access within the site complies.	YES

DCP COMPLIANCE TABLE SECTION A – Part 4 Dwelling houses		
Development control	Proposed	Complies
iii) landscape design and location of vegetation including deciduous or tall trees; iv) consideration of window locations and size. A building is to be designed and sited to maintain solar access to adjoining properties of at least 4 hours between 9am and 3pm on 21st June to north facing windows and all living areas (family rooms, rumpus, lounge and kitchen) and the principal private open space recreational areas, such as swimming pools and patios. Dwelling design and orientation is to provide at least 4 hours between 9am and 3pm on 21st June to north facing windows and all living areas (family rooms, rumpus, lounge and kitchen) and the principal private open space including swimming pools and patios, to the proposed dwelling. Where shadows cast by existing buildings preclude satisfying the above requirements, sunlight during winter solstice (21st June) should not be reduced by more than 20%. Development is to consider the use of sun protection devices that preserve internal amenity. These can include window shades and awnings, roof and eave overhangs, use of pergolas and landscaping for shading of openings.		
4C.6 Natural Ventilation		
Building design is to incorporate measures for natural cross ventilation as specified in Control 1.	The amenities building provides adequate windows for ventilation given its use.	YES
4C.7 Ancillary Facilities		
Outbuildings		
Outbuildings including studios, hobby rooms, storage structures, cubby houses or cabanas, are to be located on the site having regard to the relationship with existing development on-site and on adjoining properties.	The amenities building is appropriately located given the existing site features and relationship with adjoining sites. The siting has a minimal impact on the heritage item, being located in the area of an existing concrete slab and metal shed. Significant plants and trees in this area are to be relocated on site where necessary.	YES

DCP COMPLIANCE TABLE SECTION A – Part 4 Dwelling houses		
Development control	Proposed	Complies
	The development is mostly obscured from the street, due to its large 33.4 metres setback and the fact that it is primarily sited behind the existing house and further obscured by existing vegetation along the side boundary. The adjoining northern RFB is set back 6.5 metres from the side boundary with an access driveway and vegetation between. This, in conjunction with the small scale of the building, results in minimal impacts on the neighbouring site.	
Consideration is to be given to the position of windows associated with habitable rooms and the potential impact of noise, fumes, loss of light, and ventilation	No windows are located on the side elevation presenting to the adjoining northern site. The structure is not for habitable use and will not be used frequently given the limited days and hours the site will be in operation. As a result, noise and odour will also be limited. Solar access and ventilation of the neighbouring development will not be impacted due to the small scale of the structure. The separation distance from the adjoining RFB is adequate for the proposed use to minimise impacts.	YES
Outbuildings are not to exceed a single storey. All outbuildings will be included in both floor space ratio calculations and built upon area calculations.	The amenities building is one storey and does not result in an exceedance of the FSR or BUA controls.	YES
A minimum setback of 2 metres from boundaries is to apply for any outbuilding	The amenities building is set back 600 millimetres	NO

DCP COMPLIANCE TABLE SECTION A – Part 4 Dwelling houses		
Development control	Proposed	Complies
with a wall height exceeding 2 metres relative to the ground level at the boundary.	from the side boundary (wall height of 2.56 metres). Refer to variation discussion in this report.	
Other Site Facilities		
The location and design of facilities such as mail boxes, utility poles, bin storage and enclosures, clothes drying areas are to be an integrated and sympathetically designed as part of the site design and development. This may be achieved by: i) the undergrounding of utilities; ii) ensuring that clothes lines are not visible from the street; and iii) provision of bin enclosures.	On-site stormwater treatment systems are to be installed underground to not impact upon the site design. All other elements are to remain as existing.	YES
For requirements on noise levels associated with air conditioning, kitchen, bathroom, laundry ventilation, or other mechanical ventilation systems and other plant refer to Part 23.8 of the DCP.	Noted.	YES
4C.9 Waste Management		
During the design of the development, construction waste is to be minimised by: i) using recycled materials, selecting materials that reduce waste or do not require disposal, or can be reused or recycled in the future; ii) designing with minimal site disturbance by avoiding unnecessary excavation or fill.	Waste is to be recycled where appropriate. The design involves minimal site disturbance.	YES
Developments must allocate, within each property boundary, an area for storing Council waste and recycling bins, (1 X 120 litres, 2 x 240 litres, 1 x 360 litres) preferably located at the rear of the premises to minimise visual clutter. The storage area is to be a minimum of 3 metres from openable windows and integrated with the landscaping.	Council's Team Leader Development Engineers has advised that the existing waste arrangement is appropriate as minimal additional waste will be generated. The existing waste arrangement is considered acceptable and the referral officer's assessment is concurred with.	YES
4C.10 Materials and Finishes		
External walls must be constructed of high quality and durable materials and finishes.	Fibre cement cladding in Indian Red and cream	YES

DCP COMPLIANCE TABLE SECTION A – Part 4 Dwelling houses		
Development control	Proposed	Complies
	batten accents to match house.	
Large, unbroken expanses of any single material and finish (rendered or not) to building facades must be avoided.	The structure is of small scale.	YES
New development is to avoid extensive use of highly reflective or gloss materials on the exterior of buildings.	Highly reflective and gloss materials are not proposed. Corrugated Zincalume is proposed for the amenities building roof which is appropriate given the heritage nature and small scale of building.	YES
The exterior finish material (e.g. sandstone or brick) must be integral to the overall building façade design and must not appear to be cosmetic.	The exterior finish is integral to the façade design and does not appear cosmetic.	YES
Where additions and alterations are proposed, external materials and finishes must complement the existing building.	The colours and materials used for the proposed works complement the existing structure.	YES
Colours		
The selection of a colour scheme for new development and in the restoration of existing facades is to comply with the guidelines in control 8.	Fibre cement cladding in Indian Red and cream batten accents to match house. Other colours used, including metal elements on ramps are appropriate given the context and are recessive.	YES

An assessment of the variations to the design controls identified in the compliance table is provided below.

4C.7 Ancillary Facilities – Outbuildings

The proposal does not comply with Control 21, reproduced as follows:

A minimum setback of 2 metres from boundaries is to apply for any outbuilding with a wall height exceeding 2 metres relative to the ground level at the boundary.

The proposal includes a new amenities building which has wall height of 2.56 metres on its northern elevation and provides a setback of 600 millimetres from the northern side boundary, which is non-compliant with the control.

The 600 millimetres setback has been a requirement of Council's Heritage Advisor from previous iterations of this proposal which has remained in this application and is deemed acceptable by the Heritage Advisor and Heritage NSW. The proposed setback and siting of the amenities building have been designed to reflect the positioning of the existing

deteriorated concrete slab and the previous garage which historically sat atop the slab. The setback also ensures that the impact of the development on the significance of the heritage item is minimised, through siting the development in a location that was previously built upon, whilst also ensuring that the gardens and landscaping are minimally affected.

In addition, despite presenting a non-compliance with the above control, the proposal is consistent with the objective of the control, reproduced as follows:

To ensure outbuildings and utility areas are sympathetically positioned on the site and do not detract from the visual quality of the area.

The outbuilding does not detract from the visual quality of the area due to its small scale and large front setback from the street of 33.4 metres which ensures it is not a prominent feature when viewed from the public domain. The structure is also designed to be sympathetic to the existing dwelling in relation to form, materials and colours, whilst also not detracting from the heritage significance of the site. The siting also ensures that the structure has minimal impact upon the significance of the gardens and landscaping of the site. Furthermore, as explained within the discussion relating to the submissions to the proposal within this report, the structure results in minimal adverse impacts for the neighbouring northern site.

Therefore, the non-compliance with the control is acceptable in this circumstance due to the heritage significance of the site and the existing site features. The provision of a compliant setback would result in impacts on the heritage item, including the dwelling and the gardens, that are unwarranted.

Section B

Part 15 – Land Contamination

The site is not mapped as being contaminated and has a history of residential uses and as such, it is unlikely to contain contamination, and further investigation is not warranted in this case.

Part 16 – Bushfire Risk

The site is not mapped as bush fire prone land.

Part 17 – Riparian Lands

The site is not mapped as riparian land.

Part 18 – Biodiversity

The site is not mapped as land comprising biodiversity significance.

Part 19 – Heritage and Conservation Areas

The site is heritage listed and is within 100 metres of other heritage items but is not within a heritage conservation area.

Council's Heritage Advisor has provided a full assessment against the heritage controls of the KDCP. The assessment raised no objections to the proposal, subject to conditions recommended by Heritage NSW (**Conditions 56 – 65**). This assessment is concurred with.

Part 20 – Development near Road or Rail noise

The proposal has been assessed against the relevant provisions contained under this Part. The proposed development is consistent with these provisions as there will not be a significant detrimental impact on the road/railway from construction including excavation, noise, air quality, vibration or to the safety to users of the site or the road/ rail corridor subject to conditions. As a result, the development meets the relevant objectives of the controls.

Section C

Development Control	Proposed	Complies
Part 21 General Site Design		
21.1 – Earthworks and slope		
Development consider site topography, drainage, soli landscapes, flora, fauna and bushfire hazard by: - Stepping buildings down the site - Locate finished ground level as close to the natural ground level as practicable - Level changes to occur primarily within building footprint - Minimum 0.6 metres width between retaining walls - Maintain existing ground level within 2 metres from any boundary - Limit slope for embankments to 1:6 (grassed) and 1:3 (soil stabilising vegetation) - No fill and excavation within sensitive environments - Minimise altered groundwater flows	The proposal has been designed to ensure minimal earthworks are required. Ramps are suspended on piers to ensure minimal impact on the land and heritage item.	YES
Dwelling houses Excavation within building footprint must not exceed 1m 0.9m maximum fill 1.8 m maximum level difference across the building footprint - Retaining walls maximum 0.9m above NGL	Excavation does not exceed 1 metre.	YES
21.2 – Landscape Design		
Appropriate and sensitive site planning and design Existing appropriate screen planting is retained	Landscaping is primarily retained on the site. Two trees are proposed for removal which has been considered acceptable by Council's Team Leader – Landscape, Tree and Ecological Assessment and Heritage Advisor. Significant plantings are proposed to be relocated on the site.	YES

	The proposed landscaping and tree works are considered acceptable, and the assessments by Council's referral officers are concurred with.	
Part 22 - General access and parking		
22.1 – Equitable Access		
Compliance with DDA demonstrated Entry access ramps located within the site and does not dominate the front façade Access ways for pedestrians and for vehicles are separated.	Ramps have been provided within the front and rear yards to provide equitable access. The proposal has been accompanied by an Access Report which states that accessibility is acceptable. Pedestrian and vehicular access points are separated.	YES
22.2 – General vehicle access		
- Minimise width and number of vehicle access points - Access driveways set back at least 10 metres from street intersections and 3 metres from pedestrian entrances - Vehicle and pedestrian access to buildings clearly distinguished and separated - Vehicle crossing width is acceptable for intensity of use proposed - Vehicles must exit in a forward direction - Vehicle entries are integrated into the external façade and are finished in a high quality material - Retaining walls associated with driveways maximum height of 1.2 metres - No driveways are longer than 30 metres unless a passing bay is provided	Vehicular access is to be retained as existing. The proposal has been considered acceptable by Council's Team Leader Development Engineers and Strategic Traffic Engineer. The assessment is concurred with. The current vehicular access crossing is deemed acceptable due to its heritage significance.	YES
22.5 – Parking for people with a disability		
Accessible spaces are signposted and have a continuous path of travel to the principal entrance or a lift	Accessible parking is not provided or required. This has been deemed acceptable by Council's Strategic Traffic Engineer. The assessment is concurred with. The	YES
Non-residential development provides accessible parking as follows: Type of facilityRate of provision Retail/commercial1-2%		

<i>Civic/community centres</i> <i>Recreational facilities</i> <i>Schools</i> <i>Tertiary Education</i> <i>Entertainment</i> <i>Hospitals</i> <i>Medical centres</i> <i>Other uses</i>	2-3 2-3% 2-3% 2% 3-4% 3-4% 3% At least 1%	proposal is deemed acceptable in relation to parking.	
22R.1 – Car Parking Rates			
No specific parking rates provided for information and education facilities/house museum.	Council's Strategic Traffic Engineer has stated that the parking arrangement is acceptable, and surrounding streets can accommodate the parking within the limited operating times, which are out of peak hours on very limited days per year. Provision has been made for 1-2 bicycle parking spaces on site. The site is also located near Gordon train station and bus stops providing public transport options. The assessment is concurred with. The proposal is deemed acceptable in relation to parking impacts.	YES	
Part 23 – Building Design and Sustainability			
23.2 – Green Buildings			
All new non-residential developments are to include Ecologically Sustainable Design (ESD) measures in the following areas, and list them under these titles in the required ESD report and checklist: i) Water Efficiency: - provide systems to minimise mains water usage. ii) Energy Generation: - building design is to demonstrate a reduced reliance on mains power and provision of alternate energy sources. iii) Heating and Cooling: - use of mechanical air conditioning	The development involves a change of use of an existing heritage dwelling house to an information and education facility. No physical works are proposed other than access improvements and a small-scale amenities building (GFA of 22.93m²). The stormwater management system is	YES	

and heating is to be minimised. Where it is unavoidable, the systems are to be of a high efficiency in technology choice to reduce peak energy demand. iv) Lighting: - buildings are to be designed to reduce the need for artificial light use.	to be upgraded, including a below-ground rainwater tank which is to be connected to roof drainage and reused in the new amenities building and for gardening. All new fittings are capable of meeting 4, 5 or 6 WELS star ratings or similar as required. Electricity use is limited to the times when the property is open to the public or for events and functions (total possible maximum of 26 times a year). Electricity saving measures are not required due to the minimal use of electricity on the site. No air conditioning or heating is required or provided. Minimal artificial light is required for the amenities building due to its small size and provision of windows. Solar panels are not appropriate for the heritage context.	
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All new non-residential buildings, including alternations/ additions, less than 2,000m² GFA: i) Ecologically Sustainable Design (ESD) Report: - prepared by a GBCA Accredited Professional, verifying that the elements/systems included in the development will, in the view of that professional, result in buildings with an ESD level equivalent to a 4, 5 or 6 Star Rating under the GBCA Green Star Buildings rating tool. ii) Annotated Development Application (DA) Drawings: - clearly indicating the elements/systems described in the ESD Report, including the requirements in 23.2(1) of this section. iii) A signed Statement of Commitment from the applicant to develop and implement the elements/systems described in the ESD Report into the Construction Certificate (CC) stage and deliver elements/systems in the final built form. For all non-residential development: 2000-5000m² GLA must achieve a four star rating or equivalent if GBCA rating tool is not available	Given the proposal seeks to change the use of an existing heritage dwelling house to an information and education facility, an ESD report or upgrades to achieve green star rating are not appropriate or necessary. Upgrades would result in alterations to the heritage significance of the building, and the proposal seeks minimal physical works, including a new small-scale amenities building (GFA of 22.93m²) which is not considered necessary to comply. Furthermore, under the GBCA Green Star Building system, an uninhabited building, such as the proposed amenities building, does not meet the eligibility criteria for Green Star Buildings. Despite this, the amenities building includes sustainable features, including low flush toilets, water efficient fixtures and fittings, high performance glazing and light coloured internal finishes.	YES
23.3 – Sustainability of Building Materials and 23.4 – Materials and Finishes		
External walls constructed of high quality and durable materials	The materials have been chosen to respond appropriately to the heritage context and significance. The materials chosen are high quality and durable.	YES

	External walls are painted fibre cement cladding with battens.	
Use of materials and colours creates well-proportioned facades and minimises visual bulk	The materials chosen for the minimal works are appropriate for the site and heritage context and minimise visual bulk.	YES
23.7 – Acoustic Privacy		
Design minimises impact of internal and external noise sources	The amenities building will result in minimal mechanical noise that will not result in adverse impacts on adjoining properties. The site will only be in operation a maximum of 26 times per year and between daytime hours of 10am and 4pm. These conditions minimise noise impacts further (Condition 52) .	YES
Noise levels associated with air conditioning, kitchen, bathroom, laundry ventilation, or other mechanical ventilation systems and plant either as an individual piece of equipment or in combination shall not be audible within any habitable room in any residential premises before 7am and after 10pm. Outside of these restricted hours noise levels associated with air conditioning, kitchen, bathroom, laundry ventilation, or other mechanical ventilation systems and plant either as an individual piece of equipment or in combination shall not emit a noise level greater than 5dB(A) above the background noise (LA90, 15 min) when measured at the boundary of the nearest potentially affected neighbouring properties. The background (LA90, 15 min) level is to be determined without the source noise present.		YES
23.8 – Visual Privacy		
Visual privacy maintained for occupants and for neighbouring dwellings	The amenities building is of a small scale and does not have windows on the side elevation. The development will not impede upon the visual privacy of neighbouring residential uses.	YES
23.9 – Construction, Demolition and Disposal		
Satisfactory Environmental Site Management Plan	Minimal site disturbance is anticipated. Tree protection zones are outlined in the Arborist Report. Area of demolition is shown on the site plan. Sufficient area is available on site for interim material storage.	YES

	Erosion and Sediment Control Plan to be provided prior to the issue of a Construction Certificate.	
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Part 24 – Water management

Council's Development Engineer is satisfied that the proposed development has been designed to manage urban stormwater as per the requirements of the DCP, subject to **Conditions 1 and 45**. This assessment is concurred with.

Part 25 – Waste management

Council's Team Leader Development Engineers is satisfied that the proposed development will generate minimal additional waste, and that any additional waste will be managed using the existing waste bins on site. This assessment is concurred with. Separate general waste and recycling bins will be provided in the gardens. All waste generated from operations must be disposed of in the designated bins. As such, the proposal is considered to comply with the requirements of this Part.

REGULATIONS

Section 61(1) of the Environmental Planning & Assessment Regulation 2021 requires the consent authority to consider the provisions of *Australian Standard AS 2601-2001: The demolition of structures*. The partial demolition of the existing structure(s) will be carried out in accordance with a work plan and statement of compliance that will be required to be submitted to the Principal Certifier prior to the commencement of any works. A condition (**Condition 14**) to this effect has been included in the recommendation section of this report.

LIKELY IMPACTS

The likely impacts of the development have been considered within this report and are deemed to be acceptable, subject to conditions.

SUITABILITY OF THE SITE

The site is suitable for the proposed development.

PUBLIC INTEREST

The public interest is best served by the consistent application of the requirements of the relevant Environmental Planning Instruments, and by the Panel ensuring that any adverse effects on the surrounding area and the environment are minimised. The proposal has been assessed against the relevant environmental planning instruments and is deemed to be acceptable. On this basis, the proposal is not considered to raise any issues that are contrary to the public interest.

CONCLUSION

Having regard to the provisions of section 4.15 of the Environmental Planning and Assessment Act 1979, the proposed development is considered to be satisfactory.

RECOMMENDATION

PURSUANT TO SECTION 4.16(1) OF THE ENVIRONMENTAL PLANNING AND ASSESSMENT ACT, 1979

THAT the Ku-ring-gai Local Planning Panel, exercising the functions of Ku-ring-gai Council, as the consent authority, pursuant to Section 4.16 of the Environment Planning and Assessment Act 1979, being satisfied that the proposed development would be in the public interest, grant development consent to eDA0453/25 for a change of use from a dwelling house to an Information and Education Facility (house museum), access upgrades, amenities building and associated works - Integrated Development - Heritage Act 1977 at, 707 Pacific Highway, Gordon NSW 2072 subject to conditions. Pursuant to Section 4.53 of the Environmental Planning and Assessment Act 1979, this consent lapses if the approved works are not physically commenced within five years of the date of the Notice of Determination.

The conditions of the consent are set out as follows:

CONDITIONS THAT IDENTIFY APPROVED PLANS:

1. Approved architectural plans and documentation (alterations and additions)

The development must be carried out in accordance with work shown in colour on the plans and as described or depicted in the documentation listed below and endorsed with Council's stamp, except as amended by other conditions of this Development Consent.

Plan no.	Drawn by	Dated
<i>Architectural Plans</i>		
Site Plan Dwg No. 110430/200/A	Lucas Stapleton Johnson	07.08.2025
Site Entry Plan – Dwg No. 110430/202/B	Lucas Stapleton Johnson	05.08.2025
Rear Site Plan and New Amenities Building Dwg No. 110430/203/D	Lucas Stapleton Johnson	07.08.2025
Front and Side (N) Elevations Dwg No. 110430/204/B	Lucas Stapleton Johnson	05.08.2025
New Amenities Elevation and Section Dwg No. 110430/205/C	Lucas Stapleton Johnson	07.08.2025
Root Map and Concrete Piles Over Services Survey Dwg No. 110430/206/B	Lucas Stapleton Johnson	07.08.2025
Accessible Entry Ramp Plan Dwg No. 110430/207/B	Lucas Stapleton Johnson	07.08.2025
Accessible Entry Ramp Elevations and Sections Dwg No. 110430/208/B	Lucas Stapleton Johnson	07.08.2025
<i>Landscape Plans</i>		
Rear Site Showing Existing Landscaping to be Retained Dwg No. 110430/201/A	Lucas Stapleton Johnson	07.08.2025
<i>Stormwater Management Plans</i>		
Project No. CC250084, Issue A, Dwg No. C1 – C5	Hydracor Consulting Engineers	26.06.2025

Document(s)	Dated
Accessibility Assessment prepared by Accessibility Solutions (NSW)	31.01.2025
Arboricultural Impact Assessment prepared by Glenyss Laws Consulting Arborist Rev. B	03.02.2025
Baseline Archaeological Assessment prepared by Curio Projects Issue 2	05.08.2025
Draft Conservation Management Plan prepared by Robert Griffin Heritage & Conservation	09.2021
Museum Operational Requirements prepared by Robert Griffin	05.05.2025
Operational Plan of Management Tulkiyan prepared by Ku-Ring-Gai Council Version 2.0	07.2024
Root Mapping Report prepared by Glenyss Laws Consulting Arborist Rev. A	11.09.2024
Statement of Heritage Impact prepared by Lucas Stapleton Johnson and Partners	08.2025
Traffic and Parking Impact Assessment prepared by Express Traffic Engineering Solutions Ref: ETSJ361 – V1	08.2023

Reason: To ensure that the development is in accordance with the Development Consent.

2. Inconsistency between documents

In the event of any inconsistency between conditions of this consent and the drawings/documents referred to above, the conditions of this Development Consent prevail.

Reason: To ensure that the development is in accordance with the Development Consent.

3. No demolition of extra fabric

Alterations to, and demolition of, the existing building shall be limited to that part of the existing building as documented on the approved plans (by way of notation or otherwise). No approval is given for removal and/or rebuilding of any part of the existing building which is shown to be retained by the approved plans.

Reason: To ensure compliance with the Development Consent.

CONDITIONS TO BE SATISFIED PRIOR TO DEMOLITION, EXCAVATION OR CONSTRUCTION:

4. Asbestos works

All work involving asbestos products and materials, including asbestos-cement-sheeting (i.e. fibro), must be carried out in accordance with the guidelines for asbestos work published by Safework NSW.

Reason: To ensure public safety.

5. Notice of commencement

At least 48 hours prior to the commencement of any demolition, excavation or building works, a notice of commencement of building works or subdivision lodgement form and appointment of the Principal Certifier form shall be submitted to Council.

Reason: Statutory requirement.

6. Notification of builder's details

Prior to the commencement of any works, the Principal Certifier shall be notified in writing of the name and contractor licence number of the owner/builder intending to carry out the approved works.

Reason: Statutory requirement.

7. Tree protective fencing type galvanised mesh

Tree protection fencing shall be constructed of galvanised pipe at 2.4 metres spacing and connected by securely attached chain mesh fencing to a minimum height of 1.8 metres.

Reason: To protect existing trees.

8. Tree protection signage

Prior to the commencement of any works, tree protection signage is to be attached to the tree protection fencing, displayed in a prominent position and repeated at 10 metres intervals or closer where the fence changes direction. Each sign shall contain in a clearly legible form, the following information:

The words:

- Tree protection zone/No access.
- This fence has been installed to prevent damage to the tree/s and their growing environment both above and below ground.

and the following information:

- The name, address, and telephone number of the developer/builder and project arborist

Reason: To protect existing trees.

9. Ground protection - avoiding soil compaction

Prior to the commencement of any works, temporary measures, to avoid root damage and soil compaction, are to be installed in accordance with Section 4.5.3 (figure 4) of the current version of **Australian Standard AS 4970 - Protection of trees on development sites**, within the specified radius of the following listed tree/s:

Tree/Location
Trees: 3, 7 and 8 Adjacent to northern site boundary Between the northern boundary and the dwelling for the length of the dwelling

Reason: To protect existing trees.

10. Trunk and branch protection

Prior to the commencement of any works, the trunk/s and branches of the listed trees are to be protected by the placement of 50 x 100mm timbers over suitable protective padding

material in accordance with Section 4.5.2 of the current version of **Australian Standard AS 4970 - Protection of trees on development sites**. The trunk and branch protection shall be maintained intact until the completion of all works.

Any damage to the tree/s is to be treated in a timely manner by an experienced arborist, with minimum AQF Level 5 qualification and a report detailing the works carried out shall be submitted to the Principal Certifier:

Tree/Location
Trees: 7, 8, 12, 13 and 14 On site

Reason: To protect existing trees.

11. Inspection of tree protection measures

Upon installation of the required tree protection measures, an inspection is to be conducted by the project arborist or the Principal Certifier to verify that tree protection measures comply with all relevant conditions of this Development Consent.

Reason: To protect existing trees.

12. Project arborist

Prior to the commencement of any works, a project arborist shall be engaged to ensure all tree protection measures and works are carried out in accordance with the conditions of this Development Consent.

The project arborist shall have a minimum AQF Level 5 qualification with a minimum of 5 years' experience. Details of the arborist including name, business name and contact details shall be provided to the Principal Certifier and a copy shall be provided to Council.

Reason: To protect of existing trees.

13. Tree protection plan

Prior to the commencement of any works, tree protection works shall be carried out in accordance with the following approved tree protection plan(s), listed below and endorsed with Council's stamp, except where amended by other conditions of this Development Consent:

Plan no.	Drawn by	Dated
T01 Rev C, T02 Rev B	Glenyss Laws	03/02/2025

Reason: To protect existing trees.

CONDITIONS TO BE SATISFIED PRIOR TO THE ISSUE OF A CONSTRUCTION CERTIFICATE:

14. Statement of compliance with Australian Standards

The demolition work shall comply with the provisions of Australian Standard AS2601: 2001 The Demolition of Structures. The applicant must provide work plans required by AS2601: 2001 and a written statement from a suitably qualified person that the proposal contained in the work plan comply with the safety requirements of the Standard. The work plan and the

statement of compliance shall be submitted to and approved by the Certifier prior to the commencement of any demolition works.

Reason: To ensure compliance with the Australian Standards.

15. Access for people with disabilities (commercial)

Prior to the issue of any Construction Certificate, the Certifier shall be satisfied that access for people with disabilities from the public domain and all car parking areas on site to all tenancies within the building is provided. Dignified and equitable access shall be provided.

Compliant access provisions for people with disabilities shall be clearly shown on the plans submitted with the Construction Certificate. All details shall be provided to the Certifier prior to the issue of a Construction Certificate. All details shall be prepared in consideration of the *Disability Discrimination Act* and the relevant provisions of AS1428.1, AS1428.2, AS1428.4 and AS 1735.12.

Reason: To ensure the provision of equitable and dignified access for all people in accordance with disability discrimination legislation and relevant Australian standards.

16. Pier and beam footings near trees

Prior to the issue of any Construction Certificate, the Certifier shall be satisfied that the footings of the approved amenities building, associated retaining walls and elevated walkway will be isolated pier or pier and beam construction within the specified radius of the trunk/s of the following tree/s:

Tree/Location	Radius in metres
Tree 9: Celtis sinensis (Hackberry) Adjacent to northern site boundary within neighbouring site	11.5m
Tree 11 Stenocarpus sinuatus (Qld Firewheel Tree) Adjacent to northern site boundary within neighbouring property	5.0m
All retained trees On site	12 x trunk diameter

The piers shall be located such that no roots of a diameter greater than 30mm will be severed or injured during the construction period. The beam/s shall be of reinforced concrete or galvanised steel sections and placed in positions with the base of the beam being a minimum of 50mm above existing soil levels.

Reason: To protect existing trees.

CONDITIONS TO BE SATISFIED PRIOR TO THE ISSUE OF ANY CONSTRUCTION CERTIFICATE OR PRIOR TO DEMOLITION, EXCAVATION OR BUILDING WORKS (WHICHEVER COMES FIRST):

17. Infrastructure damage security bond and inspection fee

To ensure that any damage to Council property as a result of construction activity is rectified in a timely manner:

- (a) All work or activity undertaken pursuant to this development consent must be undertaken in a manner to avoid damage to Council property and must not jeopardise the safety of any person using or occupying the adjacent public areas.

- (b) The applicant, builder, developer or any person acting in reliance on this consent shall be responsible for making good any damage to Council property and for the removal from Council property of any waste bin, building materials, sediment, silt, or any other material or article.
- (c) The Infrastructure damage security bond and infrastructure inspection fee must be paid to Council by the applicant prior to both the issue of any Construction Certificate and the commencement of any earthworks or construction.
- (d) In consideration of payment of the infrastructure damage security bond and infrastructure inspection fee, Council will undertake such inspections of Council Property as Council considers necessary and will also undertake, on behalf of the applicant, such restoration work to Council property, if any, that Council considers necessary as a consequence of the development. The provision of such restoration work by the Council does not absolve any person of the responsibilities contained in (a) to (b) above. Restoration work to be undertaken by Council referred to in this condition is limited to work that can be undertaken by Council at a cost of not more than the Infrastructure damage security bond payable pursuant to this condition.
- (e) **Release of the bond** – Upon receipt by Council of an Occupation Certificate, Council will undertake an inspection of Councils Infrastructure and release the bond if no damage is found.

For development relating to more than 2 dwellings, there will be a six months holding period after the receipt by Council of the final occupation certificate, after which you may request Council to return any bond monies.

If there is damage found to Council property, the bond will not be released until the damage has been rectified to Council's satisfaction.

- (f) In this condition:

"Council property" includes any road, footway, footpath paving, kerbing, guttering, crossings, street furniture, seats, letter bins, trees, shrubs, lawns, mounds, bushland, and similar structures or features on any road or public road within the meaning of the Local Government Act 1993 (NSW) or any public place; and

"Infrastructure damage security bond and infrastructure inspection fee" means the Infrastructure damage security bond and infrastructure inspection fee as calculated in accordance with the Schedule of Fees & Charges adopted by Council as at the date of payment and the cost of any inspections required by the Council of Council property associated with this condition.

Reason: To maintain public infrastructure.

18. Construction Certificate plans

The Construction Certificate plans must be consistent with the approved plans and documents referred to in Condition No. 1 of this Development Consent, as modified by any conditions of consent.

Reason: To ensure that the works are carried out in accordance with the Development Consent.

CONDITIONS TO BE SATISFIED DURING THE DEMOLITION, EXCAVATION AND CONSTRUCTION PHASES:

19. Road opening permit

The opening of any footway, roadway, road shoulder or any part of the road reserve (excluding where a Driveway Application and Roads Act Approval is required) shall not be carried out without a road opening permit being applied for and obtained from Council (and upon payment of any required fees) beforehand.

Reason: Statutory requirement (Roads Act 1993 Section 138) and to maintain the integrity of Council's infrastructure.

20. Prescribed conditions

The work shall comply with any relevant prescribed conditions of development consent under Sections 69, 70, 71, 72, 73, 74 and 75 of the Environmental Planning and Assessment Regulation 2021. For the purposes of section 4.17 (11) of the Environmental Planning and Assessment Act, the following conditions are prescribed in relation to a development consent for development that involves any building work:

Compliance with Building Code of Australia and insurance requirements under [Home Building Act 1989](#)

- 1) It is a condition of a development consent for development that involves building work that the work must be carried out in accordance with the requirements of the *Building Code of Australia*.
- 2) It is a condition of a development consent for development that involves residential building work for which a contract of insurance is required under the [Home Building Act 1989](#), Part 6 that a contract of insurance is in force before building work authorised to be carried out by the consent commences.
- 3) It is a condition of a development consent for a temporary structure used as an entertainment venue that the temporary structure must comply with Part B1 and NSW Part H102 in Volume 1 of the *Building Code of Australia*.
- 4) In subsection (1), a reference to the *Building Code of Australia* is a reference to the Building Code of Australia as in force on the day on which the application for the construction certificate was made.
- 5) In subsection (3), a reference to the *Building Code of Australia* is a reference to the Building Code of Australia as in force on the day on which the application for development consent was made.
- 6) This section does not apply -
 - (a) to the extent to which an exemption from a provision of the *Building Code of Australia* or a fire safety standard is in force under the [Environmental Planning and Assessment \(Development Certification and Fire Safety\) Regulation 2021](#), or
 - (b) to the erection of a temporary building, other than a temporary structure to which subsection (3) applies.
- 7) **relevant date** has the same meaning as in the *Environmental Planning and Assessment (Development Certification and Fire Safety) Regulation 2021*, section 19.

Erection of signs

- 1) This section applies to a development consent for development involving building work, subdivision work or demolition work.
- 2) It is a condition of the development consent that a sign must be erected in a prominent position on a site on which building work, subdivision work or demolition work is being carried out -
 - (a) showing the name, address and telephone number of the principal certifier for the work, and
 - (b) showing the name of the principal contractor, if any, for the building work and a telephone number on which the principal contractor may be contacted outside working hours, and
 - (c) stating that unauthorised entry to the work site is prohibited.
- 3) The sign must be -
 - (a) maintained while the building work, subdivision work or demolition work is being carried out, and
 - (b) removed when the work has been completed.
- 4) This section does not apply in relation to -
 - (a) building work, subdivision work or demolition work carried out inside an existing building, if the work does not affect the external walls of the building, or
 - (b) Crown building work certified to comply with the *Building Code of Australia* under the Act, Part 6.

Notification of [Home Building Act 1989](#) requirements

- 1) This section applies to a development consent for development involving residential building work if the principal certifier is not the council.
- 2) It is a condition of the development consent that residential building work must not be carried out unless the principal certifier for the development to which the work relates has given the council written notice of the following -
 - (a) for work that requires a principal contractor to be appointed -
 - i. the name and licence number of the principal contractor, and
 - ii. the name of the insurer of the work under the [Home Building Act 1989](#), Part 6,
 - (b) for work to be carried out by an owner-builder -
 - i. the name of the owner-builder, and
 - ii. if the owner-builder is required to hold an owner-builder permit under the [Home Building Act 1989](#) - the number of the owner-builder permit.
- 3) If the information notified under subsection (2) is no longer correct, it is a condition of the development consent that further work must not be carried out unless the principal certifier has given the council written notice of the updated information.
- 4) This section does not apply in relation to Crown building work certified to comply with the *Building Code of Australia* under the Act, Part 6.

Entertainment venues

- 1) The requirements specified in this section are conditions of development consent for the use of a building as an entertainment venue.
- 2) During a stage performance at an entertainment venue, there must be at least 1 suitably trained person in attendance in the stage area at all times for the purpose of operating, if necessary, a proscenium safety curtain, drencher system and smoke exhaust system.
- 3) If a proscenium safety curtain is installed at an entertainment venue, there must be no obstruction to the opening or closing of the curtain and the curtain must be operable at all times.
- 4) When a film is being screened at an entertainment venue, there must be at least 1 person in attendance at the entertainment venue who is trained in -
 - (a) the operation of the projectors being used, and
 - (b) the use of the fire-fighting equipment in the room in which the projectors are installed (the projection room).
- 5) If the projection room is not fitted with automatic fire suppression equipment and a smoke detection system, in accordance with the Building Code of Australia, the person required by subsection (4) to be in attendance must be in the projection suite in which the projection room is located during the screening of a film.
- 6) A member of the public must not be present in the projection suite during the screening of a film.
- 7) An entertainment venue must not screen a nitrate film.
- 8) An emergency evacuation plan must be prepared, maintained and implemented for a building, other than a temporary structure, used as an entertainment venue.
- 9) The emergency evacuation plan must specify the following -
 - (a) the location of all exits, and fire protection and safety equipment, for the part of the building used as an entertainment venue,
 - (b) the number of fire safety officers that must be present during performances,
 - (c) how the audience will be evacuated from the building if there is a fire or other emergency.
- 10) A fire safety officer appointed to be present during a performance must have appropriate training in evacuating persons from the building if there is a fire or other emergency.
- 11) In this section -
 - (a) exit has the same meaning as in the Building Code of Australia.

Maximum capacity signage

- 1) This section applies to a development consent, including an existing development consent, for the following uses of a building, if the development consent contains a condition specifying the maximum number of persons permitted in the building -
 - (a) an entertainment venue,
 - (b) a function centre,
 - (c) a pub,
 - (d) a registered club,
 - (e) a restaurant or cafe.

- 2) It is a condition of the development consent that a sign must be displayed in a prominent position in the building stating the maximum number of persons, as specified in the development consent, that are permitted in the building.

Shoring and adequacy of adjoining property

- 1) This section applies to a development consent for development that involves excavation that extends below the level of the base of the footings of a building, structure or work on adjoining land, including a structure or work in a road or rail corridor.
- 2) It is a condition of the development consent that the person having the benefit of the development consent must, at the person's own expense -
 - (a) protect and support the building, structure or work on adjoining land from possible damage from the excavation, and
 - (b) if necessary, underpin the building, structure or work on adjoining land to prevent damage from the excavation.
- 3) This section does not apply if -
 - (a) the person having the benefit of the development consent owns the adjoining land, or
 - (b) the owner of the adjoining land gives written consent to the condition not applying.

Reason: Statutory Requirement.

21. Hours of work

Demolition, construction work and deliveries of building material and equipment must not take place outside the hours of 7.00am to 5.00pm Monday to Friday and 8.00am to 12 noon Saturday. No work and no deliveries are to take place on Sundays and public holidays.

Demolition and/or excavation using machinery of any kind must be limited to between 7.00am and 5.00pm Monday to Friday, with a respite break of 45 minutes between 12 noon and 1.00pm. No demolition and/or excavation using machinery of any kind is to occur on Saturdays, Sundays or public holidays.

Where it is necessary for works to occur outside of these hours (i.e. placement of concrete for large floor areas on large residential/commercial developments or where building processes require the use of oversized trucks and/or cranes that are restricted by Transport for NSW (TfNSW) from travelling during daylight hours to deliver, erect or remove machinery, tower cranes, pre-cast panels, beams, tanks or service equipment to or from the site), approval for such activities will be subject to the issue of an "outside of hours works permit" from Council as well as notification of the surrounding properties likely to be affected by the proposed works.

Failure to obtain a permit to work outside of the approved hours will result in regulatory action.

Reason: To ensure reasonable standards of amenity for occupants of neighbouring properties.

22. Approved plans to be on site

A copy of all approved and certified plans, specifications and documents incorporating conditions of consent and certification (including the Construction Certificate if required for the work) shall be always kept on site during the demolition, excavation and construction phases and must be readily available to any officer of Council or the Principal Certifier.

Reason: To ensure that the development is in accordance with the determination.

23. Site notice

A site notice shall be erected on the site prior to any work commencing and shall be displayed throughout the works period.

The site notice must:

- be prominently displayed at the boundaries of the site for the purposes of informing the public that unauthorised entry to the site is not permitted
- display project details including, but not limited to the details of the builder, Principal Certifier and structural engineer
- be durable and weatherproof
- display the approved hours of work, the name of the site/project manager, the responsible managing company (if any), its address and 24 hour contact phone number for any inquiries, including construction/noise complaint are to be displayed on the site notice
- be mounted at height of 1.6 metres above natural ground on the perimeter hoardings/fencing and is to state that unauthorised entry to the site is not permitted

Reason: To ensure public safety and public information.

24. Dust control

During excavation, demolition and construction, adequate measures shall be taken to prevent dust from affecting the amenity of the neighbourhood. The following measures must be adopted:

- physical barriers shall be placed around or over dust sources to prevent wind or activity from generating dust
- earthworks and scheduling activities shall be managed to coincide with the next stage of development to minimise the amount of time the site is left cut or exposed
- all materials shall be stored or stockpiled at the best locations
- the ground surface should be dampened slightly to prevent dust from becoming airborne but should not be wet to the extent that run-off occurs
- all vehicles carrying spoil or rubble to or from the site shall at all times be covered to prevent the escape of dust
- all equipment wheels shall be washed before exiting the site using manual or automated sprayers and drive-through washing bays
- gates shall be closed between vehicle movements and shall be fitted with shade cloth
- cleaning of footpaths and roadways shall be carried out at least daily
- no advertising or signage is permitted to be attached to dust cloth material.

Reason: To protect the environment and the amenity of surrounding properties.

25. Use of road or footpath

During excavation, demolition and construction phases, no building materials, plant or the like are to be stored on the road or footpath without written approval being obtained from Council beforehand. The footpath shall be kept in a clean, tidy and safe condition during building operations. Council reserves the right, without notice, to rectify any such breach and to charge the cost of rectification against the applicant/owner/builder or any other responsible person, as the case may be.

Reason: To ensure safety and amenity of the area.

26. Toilet facilities

Toilet facilities must be available or provided at the work site before works begin and must be maintained until the works are completed. One toilet, plus one additional toilet for every 20 persons working at the site, are to be provided. Each toilet must:

- a) be a standard flushing toilet connected to a public sewer, or
- b) have an on-site effluent disposal system approved under the Local Government Act 1993 [<https://www.legislation.nsw.gov.au/>](https://www.legislation.nsw.gov.au/), or
- c) be a temporary chemical closet approved under the Local Government Act 1993 [<https://www.legislation.nsw.gov.au/>](https://www.legislation.nsw.gov.au/).

Reason: Statutory requirement.

27. Recycling of building material (general)

During demolition and construction, the Principal Certifier shall be satisfied that building materials suitable for recycling have been forwarded to an appropriate registered business dealing in recycling of materials. Materials to be recycled must be kept in good order.

Reason: To facilitate recycling of materials.

28. Garbage receptacle

1. A garbage receptacle must be provided at the work site before works begin and must be maintained until all works are completed.
2. The garbage receptacle must have a tight fitting lid and be suitable for the reception of food scraps and papers.
3. The receptacle lid must be kept closed at all times, other than when garbage is being deposited.

Reason: To ensure appropriate construction site waste management and to avoid injury to wildlife.

29. Construction signage

All construction signs must comply with the following requirements:

- are not to cover any mechanical ventilation inlet or outlet vent
- are not illuminated, self-illuminated or flashing at any time
- are located wholly within a property where construction is being undertaken
- refer only to the business(es) undertaking the construction and/or the site at which the construction is being undertaken

- are restricted to one such sign per property
- do not exceed 2.5m²
- are removed within 14 days of the completion of all construction works

Reason: To ensure compliance with Council's controls regarding signage.

30. Road reserve safety

All public footways and roadways fronting and adjacent to the site must be maintained in a safe condition at all times during the course of the development works. Construction materials must not be stored in the road reserve. A safe pedestrian circulation route and a pavement/route free of trip hazards must be maintained at all times on or adjacent to any public access ways fronting the construction site. Where public infrastructure is damaged, repair works must be carried out when and as directed by Council officers. Where pedestrian circulation is diverted on to the roadway or verge areas, clear directional signage and protective barricades must be installed in accordance with AS1742-3 (2009) "Manual for Uniform Traffic Control Devices for Work on Roads". If pedestrian circulation is not satisfactorily maintained across the site frontage, and action is not taken promptly to rectify the defects, Council may take actions to stop work, which may include the bringing of proceedings.

Reason: To ensure safe public footways and roadways during construction.

31. Services

Where required, the adjustment or inclusion of any new utility service facilities must be carried out in accordance with the requirements of the relevant utility authority. These works shall be at no cost to Council. It is the applicant's responsibility to make contact with the relevant utility authorities to ascertain the impacts of the proposal upon utility services (including water, phone, gas and the like). Council accepts no responsibility for any matter arising from its approval to this application involving any influence upon utility services provided by another authority.

Reason: Provision of utility services.

32. Erosion control

Temporary sediment and erosion control and measures are to be installed prior to the commencement of any works on the site. These measures must be maintained in working order during construction works up to completion. All sediment traps must be cleared on a regular basis and after each major storm and/or as directed by the Principal Certifier and Council.

Reason: To protect the environment from erosion and sedimentation.

33. Landscape works near trees

To avoid tree impacts, all landscape works such as soil preparation, soil spreading, mulching and planting shall be carried out by hand within the specified radius of the following trees.

Tree/location	Radius in metres
All retained trees On site and within 5.0m of site boundaries	12 x trunk diameter

Reason: To protect existing trees.

34. Retention of tree roots

No tree roots of 50mm or greater in diameter located within the specified radius of the trunk/s of the following tree/s shall be severed or injured in the process of any works during the construction period. All pruning of roots less than 50mm in diameter shall be undertaken by an experienced arborist/horticulturalist, with a minimum AQF Level 3 qualification.

Tree/location	Radius in metres
All retained trees On site and within 5.0m of site boundaries	12 x trunk diameter

Reason: To protect existing trees.

35. Approved tree works

Prior to the commencement of any works, the following is to be undertaken to the specified trees:

Tree/location	Approved tree works
Tree 10 <i>Loropetalum chinense</i> (Chinese Fringe Flower) Rear garden	Removal
Tree 15 <i>Prunus serrulata</i> (Flowering Cherry) Rear garden	Removal

1. All trees are to be clearly tagged and identified in accordance with the specifications in the arborist report prior to the removal or pruning of any tree/s.
2. Canopy and/or root pruning shall be undertaken by an experienced arborist/horticulturalist, with a minimum AQF Level 3 qualification.
3. All root or canopy pruning works shall be undertaken as specified in current version of **Australian Standard AS 4373 - Pruning of amenity trees**.

Removal or pruning of any other tree on the site is not approved, excluding species and works exempt under Council's Development Control Plan.

Reason: To ensure that the development is in accordance with the Development Consent.

36. Hand excavation

All excavation within the specified radius of the trunk/s of the following tree/s shall be carried out by hand digging and/or by an air knife and shall be supervised by an experienced arborist/horticulturalist, with a minimum AQF Level 3 qualification. The arborist /horticulturalist shall provide a report to the Principal Certifier confirming compliance with this condition:

Tree/Location	Radius in metres
All retained trees On site and within 5.0m of site boundaries	12 x trunk diameter

Reason: To protect existing trees.

37. No storage of materials beneath trees

No activities, soil compaction, storage or disposal of materials shall take place beneath the canopy of any tree protected under Council's Development Control Plan at any time unless specified in other conditions of this consent.

Reason: To protect existing trees.

38. Removal of refuse

All builders' refuse, spoil and/or material unsuitable for use in landscape areas shall be removed from the site on completion of the building works.

Reason: To protect the environment.

39. On site retention of waste dockets

All demolition, excavation and construction waste dockets are to be retained on site, or at suitable location, in order to confirm which facility received materials generated from the site for recycling or disposal.

- each docket is to be an official receipt from a facility authorised to accept the material type, for disposal or processing
- this information is to be made available at the request of an authorised Council officer.

Reason: To protect the environment.

40. Maintenance of site

All materials and equipment must be stored wholly within the work site unless an approval to store them elsewhere is held.

Waste materials (including excavation, demolition and construction waste materials) must be managed on the site and then disposed of at a waste management facility.

Any run-off and erosion control measures required must be maintained within their operating capacity until the completion of the works to prevent debris escaping from the site into drainage systems, waterways, adjoining properties and roads.

During construction:

- all vehicles entering or leaving the site must have their loads covered, and
- all vehicles, before leaving the site, must be cleaned of dirt, sand and other materials, to avoid tracking these materials onto public roads.

At the completion of the works, the work site must be left clear of waste and debris.

Reason: To ensure the site is appropriately maintained.

41. Control of construction noise (Australian Standard)

During excavation, demolition and construction phases, noise generated from the site shall be controlled in accordance with best practice objectives of AS 2436-2010 and NSW Environment Protection Authority Interim Construction Noise Guidelines.

Reason: To protect the amenity of neighbouring properties

42. Site fencing

The site must be secured and fenced prior to works commencing. All excavation, demolition and construction works shall be properly guarded and protected with hoardings or fencing to prevent them from being dangerous to life and property.

If the work involved in the excavation, demolition or construction of the development is likely to cause pedestrian or vehicular traffic in a public place to be obstructed or rendered inconvenient, or building involves the enclosure of a public place, a hoarding or fence must be erected between the work site and the public place.

If necessary, hoarding is to be erected, sufficient to prevent any substance from, or in connection with, the work falling into the public place (note that separate approval is required prior to the commencement of works to erect a hoarding or temporary fence on public property).

The work site must be kept lit between sunset and sunrise if it is likely to be hazardous to persons on public property.

The site shall be secured/locked to prevent access at the end of each day.

Any hoarding, fence or awning is to be removed when the construction work has been completed.

Reason: To ensure public safety.

CONDITIONS TO BE SATISFIED PRIOR TO THE ISSUE OF AN OCCUPATION CERTIFICATE:

43. Completion of landscape works

Prior to the issue of an Occupation Certificate, the Principal Certifier is to be satisfied that all landscape works have been undertaken in accordance with the approved plan(s) and conditions of this development consent.

Reason: To ensure that the landscape works are consistent with the Development Consent.

44. Conduct of business premises - amenity

The business shall be conducted and patrons controlled at all times by the business operator so that no interference occurs to the amenity of the area.

Reason: To protect residential amenity.

45. Certification of drainage works (alterations and additions)

Prior to issue of an Occupation Certificate, the Principal Certifier is to be satisfied that:

1. The components of the new drainage system have been installed by a licensed contractor in accordance with the National Plumbing and Drainage Code AS3500.3 and the Building Code of Australia.
2. The stormwater drainage works have been completed in accordance with the approved Construction Certificate drainage plans, the nominated BASIX commitments and Ku-ring-gai DCP Part 24 'Water Management'.

Evidence from the plumbing contractor or a qualified civil/hydraulic engineer confirming compliance with this condition is to be provided to Council prior to the issue of an Occupation Certificate.

Reason: To ensure appropriate stormwater management.

46. Fire safety certificate

Prior to the issue of an Occupation Certificate, the Principal Certifier shall be satisfied that a fire safety certificate for all the essential fire or other safety measures forming part of this Development Consent has been completed and provided to Council.

Reason: To ensure suitable fire safety measures are in place.

CONDITIONS TO BE SATISFIED AT ALL TIMES:

47. Outdoor lighting

All external lighting must:

1. Comply with AS/NZS 4282:2019: *Control of the obtrusive effects of outdoor lighting* and
2. Be mounted, screened and directed in a way that it does not create a nuisance or light spill on to buildings on adjoining lots or public places.

Lighting at vehicle access points to the development must be provided in accordance with AS/NZS 1158 Set: 2010 *Lighting for roads and public spaces*.

Reason: To protect the amenity of surrounding properties.

48. Noise control - mechanical plant

Noise levels associated with mechanical plant installed on the premises must not be audible within any habitable room in any other neighbouring residential premises before 7.00am and after 10.00pm. Outside of these restricted hours noise levels associated with mechanical plant installed on the premises either as an individual piece of equipment or in combination must not emit a noise level greater than 5dB(A) above the background noise (LA90, 15 min) when measured at the nearest adjoining property boundary. The background (LA90, 15 min) level is to be determined without the source noise present.

Reason: To protect the amenity of neighbouring residential occupants and neighbouring properties.

49. Noise control - rainwater re-use system

Noise levels associated with rainwater re-use system(s) installed on the premises must not be audible within any habitable room in any other neighbouring residential premises before 7.00am and after 10.00pm. Outside of these restricted hours noise levels associated with rainwater re-use system(s) installed on the premises either as an individual piece of equipment or in combination must not emit a noise level greater than 5dB(A) above the background noise (LA90, 15 min) when measured at the nearest adjoining property boundary. The background (LA90, 15 min) level is to be determined without the source noise present.

Reason: To protect the amenity of neighbouring residential occupants and neighbouring properties.

50. Noise Control - mechanical exhaust ventilation

Noise levels associated with mechanical exhaust ventilation installed on the premises must not be audible within any habitable room in any other neighbouring residential premises before 7.00am and after 10.00pm. Outside of these restricted hours noise levels associated with mechanical exhaust ventilation installed on the premises either as an individual piece of equipment or in combination must not emit a noise level greater than 5dB(A) above the background noise (LA90, 15 min) when measured at the nearest adjoining property boundary. The background (LA90, 15 min) level is to be determined without the source noise present.

Reason: To protect the amenity of neighbouring residential occupants and neighbouring properties.

51. Deliveries and waste collections - commercial premises

All deliveries and waste collection services for the business are to be carried out between 6:00am and 10:00pm only.

Reason: To protect the amenity of the surrounding area.

52. Hours of operation

At all times, the hours of operation are restricted to:

- Supervised public access to the house and gardens:
No more than 14 times a year and only within the hours of 10am to 4pm (weather permitting).
- Events:
No more than 12 events per year for no more than 4 hours public access per event.

Reason: To protect the amenity of the area.

53. Compliance with the approved plan of management

The operation of the Information and Education Facility (house museum) shall be in accordance with the approved Operational Plan of Management for Tulkiyan House, 707 Pacific Highway, Gordon prepared by Ku-Ring-Gai Council dated July 2024, Version 2.0 and the Museum Operational Requirements document in relation to staffing arrangement prepared by Robert Griffin dated 5 May 2025.

The premises must be operated in accordance with the submitted plan of management approved by Council except where amended/varied by conditions of this consent.

The Plan of Management shall be consistent with the approved frequencies and hours of operation and provided to the consent authority prior to operation.

Reason: To ensure the premises are well-run, encourage a satisfactory and safe environment for the house museum staff, volunteers and visitors, and that the operation of the premises does not cause a disturbance in the local area.

54. Annual fire safety statement

Each 12 months after the installation of essential fire or other safety measures, the Owner of a building must provide the Council with an Annual Fire Safety Statement for the building. In addition, a copy of the Statement must be given to the NSW Fire Commissioner, and a third copy must be displayed prominently in the building.

Reason: To ensure maintenance of essential statutory fire safety measures.

55. Separate consent for signage

Development Consent must be obtained for any signs which are either externally fitted or applied, prior to the erection of any such signs. This does not apply to signs which are classified as being "Exempt Development".

Reason: To protect residential amenity.

INTEGRATED REFERRAL CONDITIONS:

56. Approved development

Development must be in accordance with:

- a) Architectural drawings, prepared by Lucas Stapleton Johnson Heritage Planning and Architecture as listed below:

DWG No.	Dwg Title	Date	Rev
110430/201	SITE PLAN	08.01.2025	A
110430/201	REAR SITE SHOWING EXISTING LANDSCAPE TO BE RETAINED	08.01.2025	A
110430/202	SITE ENTRY PLAN	08.01.2025	B
110430/203	REAR SITE PLAN AND NEW AMENITIES PLAN	08.01.2025	D
110430/204	<u>FRONT AND SIDE (N) ELEVATIONS</u>	08.01.2025	B
110430/205	NEW AMENITIES ELEVATION AND SECTION	08.01.2025	C
110430/207	<u>ACCESSIBLE ENTRY RAMP PLAN</u>	01.09.2025	B
110430/208	<u>ACCESSIBLE ENTRY RAMP ELEVATIONS AND SECTIONS</u>	01.09.2025	B

- b) Report: Statement of Heritage Impact, Tulkiyan, 707 Pacific Highway, Gordon, prepared by Lucas, Stapleton, Johnson and Partners Pty Ltd, dated August 2025.
- c) Report: Conservation Management Plan, Tulkiyan, 707 Pacific Highway, Gordon (Draft), prepared by Robert Griffin Heritage & Conservation, dated September 2021.
- d) Report: Baseline Archaeological Assessment, Tulkiyan, 707 Pacific Highway, Gordon, prepared by Curio Projects, dated August 2025.
- e) Report: Arboricultural Impact Assessment Report, Tulkiyan, 707 Pacific Highway, Gordon, prepared by Glenyss Laws Consulting Arborist, dated 3 February 2025.

57. Details to be submitted for approval

The following information is to be submitted with the s60 application for approval by the Heritage Council of NSW (or delegate):

A detailed methodology is to be prepared outlining how the original marble stairs and landing will be protected from physical damage, moisture retention and structural stress during both the installation and ongoing use of the front entry ramp.

Reason: The details requested were not supplied during the assessment of the application. The assessment and management of these details is considered essential in order to obtain a good heritage outcome.

58. Heritage consultant

A suitably qualified and experienced heritage consultant must be nominated for this project. The nominated heritage consultant must provide input into the detailed design, provide heritage information to be imparted to all tradespeople during site inductions, and oversee the works to minimise impacts to heritage values. The nominated heritage consultant must be involved in the selection of appropriate tradespersons and must be satisfied that all work has been carried out in accordance with the conditions of this consent.

Reason: So that appropriate heritage advice is provided to support best practice conservation and ensure works are undertaken in accordance with this approval.

59. Site protection

Significant built and landscape elements are to be protected during site preparation and the works from potential damage. Protection systems must ensure significant fabric, including landscape elements, is not damaged or removed.

Reason: To ensure significant fabric including vegetation is protected during construction.

60. Heritage Interpretation Plan

- 1) An interpretation plan must be prepared in accordance with the Heritage NSW publication 'Interpreting Heritage Places and Items Guidelines' (2005) and submitted for approval to the Heritage Council of NSW (or delegate) prior to the issue of a Construction Certificate.
- 2) The interpretation plan must detail how information on the history and significance of Tulkiyan will be provided for the public, and make recommendations regarding public accessibility, signage and lighting. The plan must identify the types, locations, materials, colours, dimensions, fixings and text of interpretive devices that will be installed as part of this project.
- 3) The approved interpretation plan must be implemented prior to the commencement of public access and operations at the museum.

Reason: Interpretation is an important part of every proposal for works at heritage places.

61. Photographic Archival Recording

A photographic archival recording of the garden, driveway and entry must be prepared prior to the commencement of works and at the completion of works. This recording must be in accordance with the Heritage NSW publication 'Photographic Recording of Heritage Items using Film or Digital Capture' (2006). The digital copy of the archival record must be provided to Heritage NSW.

Reason: To capture the condition and appearance of the place prior to modification of the site which impacts significant fabric.

62. Unexpected finds

The Applicant must ensure that if substantial intact archaeological deposits and/or State significant relics or any other buried fabric such as works not identified in Baseline Archaeological Assessment, Tulkiyan, 707 Pacific Highway, Gordon, prepared by Curio Projects, dated August 2025, are discovered, work must cease in the affected area(s) and the Heritage Council of NSW must be notified. Additional assessment and approval may be required prior to works continuing in the affected area(s) based on the nature of the discovery.

Reason: All significant fabric within a State Heritage Register curtilage should be managed according to its significance. This is a standard condition to identify to the applicant how to proceed if historical archaeological relics, or other unexpected buried discoveries such as works are identified during the approved project.

63. Aboriginal objects

Should any Aboriginal objects be uncovered by the work which is not covered by a valid Aboriginal Heritage Impact Permit, excavation or disturbance of the area is to stop immediately and Heritage NSW is to be informed in accordance with the National Parks and Wildlife Act 1974. Works affecting Aboriginal objects on the site must not continue until Heritage NSW has been informed and the appropriate approvals are in place. Aboriginal objects must be managed in accordance with the National Parks and Wildlife Act 1974.

Reason: This is a standard condition to identify to the applicant how to proceed if Aboriginal objects are unexpectedly identified during works.

64. Compliance

If requested, the applicant and any nominated heritage consultant may be required to participate in audits of Heritage Council of NSW approvals to confirm compliance with conditions of consent.

Reason: To ensure that the proposed works are completed as approved.

65. Section 60 application

An application under section 60 of the Heritage Act 1977 must be submitted to, and approved by, the Heritage Council of NSW (or delegate), prior to work commencing.

Reason: To meet legislative requirements.